

**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**
Tampa Division

ALEXIS EVERINGTON and RICHARD WHITE, Plaintiffs, v. TIMOTHY J. RIESEN, Defendant.	Case No. 8:23-cv-02386-JLB-NHA
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**NOTICE OF FILING EXHIBITS IN SUPPORT OF DEFENDANT'S
SECOND MOTION TO COMPEL DISCOVERY RESPONSES**

Defendant Timothy J. Riesen, by and through his undersigned counsel, hereby files the Exhibits referenced in Defendant's Second Motion to Compel Discovery Responses (Dkt. 113), which was filed on January 16, 2026. Due to technical difficulties with the CM/ECF upload process at the time of the Motion's filing, the Exhibits were not attached to the original docket entry.

The Exhibits that Defendant is hereby filing are those set forth below:

<u>EXHIBIT</u>	<u>DESCRIPTION</u>
Exhibit A	Plaintiff White's Supplemental Response to Defendant's First Request for Production of Documents
Exhibit B	Plaintiff Everington's Supplemental Response to Defendant's First Request for Production of Documents
Exhibit C	Plaintiff White's Supplemental Response to Defendant's First Set of Interrogatories
Exhibit D	Plaintiff Everington's Supplemental Response to Defendant's First Set of Interrogatories
Exhibit E	Plaintiff White's Response to Defendant's Second Request for Production of Documents
Exhibit F	Plaintiff Everington's Response to Defendant's Second Request for Production of Documents
Exhibit G	Meet and Confer Email Correspondence (January 16, 2026)

Date: January 19, 2026

/s/ H. Scott Johanson, Jr.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing was served on this 19th day of January 2026 via e-mail service to counsel for the Plaintiffs.

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/s/ H. Scott Johnson, Jr. _____

H. Scott Johnson, Jr., Esq.

**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

ALEXIS EVERINGTON
and RICHARD WHITE

Plaintiffs,
v.

TIMOTHY J. RIESEN

Defendant.

Case No. 8:23-cv-02386-JLB-NHA

**PLAINTIFF WHITE'S SUPPLEMENTAL RESPONSE TO DEFENDANT'S
FIRST REQUEST FOR PRODUCTION**

Richard White, by and through undersigned counsel, hereby serves his supplemental response to Defendant's First Request for Production and in support thereof states as follows:

FIRST REQUEST FOR PRODUCTION

Discovery is ongoing and White expressly reserves the right to supplement these responses:

1. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count I in your Complaint.

RESPONSE:

Please see Documents including (and responses to numbers 2, 3, and 4):

- Bonus Agreement, Bates numbers PP:08/24:000004-6, 97-99,
- Confidentiality Agreement, Bates numbers PP:08/24:000032-34, 198-205
- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Employment Offer Letter to White, PP:08/24:000276
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Communication with Defendant that IAS and MSI not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353;

SUPPLEMENT:

- Everington's Employment Offer dated October 15, 2013; PP12/25:000126
- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18
- MSI travel policy; PP: 12/25:000020-28
- MSI Notice of Intervention and Riesen correspondence; PP: 12/25:000029-32
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45

- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- MSI Proposal; PP: 12/25:000056-71
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115
- Riesen correspondence providing audit of MSI to Plaintiffs; PP12/25:000116-125, 129-138, 218-220
- Timesheet for Alexis and for Scientists; PP12/25:000128, 139
- MSI Proposal for Macedonia, listing Plaintiffs as Directors; PP12/25:000140-170, 187-217
- MSI Proposal for Asset Recovery, listing Everington as Managing Principal; PP12/25:000171-186
- Correspondence between parties regarding UK team, Mexico budget; PP12/25:000221-233
- Correspondence between parties, Riesen stating will use remaining funds for marketing or slush fund; PP12/25:000234-238
- Correspondence between parties and other MSI employees regarding: edits for Thales claim, projects in 2013; Odierno contract 2015, Riesen creating invoices: PP12/25:000239-252
- Riesen creating invoices: PP12/25:000251
- MSI potential buyer tracking: PP12/25:000074-77
- Confidential Premise/MSI Market Research; PP12/25:000078-84
- The McLean Group discussion materials for MSI; PP12/25:000085-115
- Riesen correspondence regarding Plaintiffs' ownership interest in MSI and GRAP; PP12/25:000001-4, 7
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005;
- Correspondence White regarding company structure; PP12/25:00006
- Correspondence regarding DCR Mine Project; PP12/25:00015 PP12/25:000005-19
- MSI Corporate Travel Policy; PP12/25:000020-28
- Riesen providing Intervention information to Plaintiffs; PP12/25:000029-34
- Riesen correspondence regarding 2013 Stock Option Agreements; PP12/25:000036-38

- Correspondence regarding parties accomplishing great things; PP12/25:000039-40
- Correspondence regarding Riesen's call with Premise; PP12/25:000042-43
- Riesen correspondence regarding 2021 is the year to sell; PP12/25:000045
- Attorney Morris letter dated August 3, 2022; PP12/25:000046-49
- Correspondence regarding using an MSI template; PP12/25:000051-52
- Riesen Correspondence that regards them as a collaboration and not as vendor/client; PP12/25:000054-55
- Terrorism Proposal; PP12/25:000056-71

2. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count II in your Complaint.

RESPONSE:

Please see responses to numbers 1, 3, and 4.

Please also see the following:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;

(Beowulf and Purchase Order):PP:08/24:000277-279;

(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431

- Business cards
PP:08/24:000002-3
PP:08/24:000280-281

SUPPLEMENT:

- Everington's Employment Offer dated October 15, 2013; PP12/25:000126
- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million, PP:12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence – Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Confidential documents pertaining to MSI's Potential Buyer Tracking;

Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005, 12-14

3. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count III in your Complaint.

RESPONSE:

Please see responses to numbers 1, 2 and 4.

Please also see:

- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(Beowulf and Purchase Order):PP:08/24:000277-279;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431
- Business cards
PP:08/24:000002-3
PP:08/24:000280-281
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen correspondence that deal was worth \$12 million, PP:12/25:000005

- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005, 12-14

4. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count IV in your Complaint.

RESPONSE:

Please see responses to numbers 1-3.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(Beowulf and Purchase Order):PP:08/24:000277-279;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431
- Communications regarding Mare Nova:

PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005; 12-14

5. Produce all Documents relating to or relied upon by you in preparing your responses to Defendant's First Set of Interrogatories.

RESPONSE:

Objection, this question is duplicative of the previous requests numbers 1 through 4. Plaintiff relied upon all documents being produced in answering the interrogatories. Without waiving said objection, please see responses numbers 1 through 4.

6. Produce all Documents constituting Communications between you and any Person relating to your Complaint and any allegations, claims and defenses in this Action.

RESPONSE:

Objection, this question as phrased asks for communications involving the attorney client and/or work product privilege.

7. Produce all diaries, journals, calendars, day-timers, or similar Documents that you have maintained since January 1, 2010.

RESPONSE:

Objection, this question as phrased asks for communications involving the attorney client and/or work product privilege. Without waiving this objection, Plaintiff answers discovery is ongoing and will update this response if there are responsive documents.

8. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction, agreement, negotiation, or course of conduct between you and Defendant including, without limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from Defendant.

RESPONSE:

Objection, this question as phrased is duplicative of the requests numbers 1 through 4 and have already been asked and answered. Without waiving this objection, Plaintiff answers please see responses to 1 through 4.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Related Documents pertaining to MSI:

(Premise, MSI and Chertoff, Department of AirForce related documents):

PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;

(MSI employee handbook): PP:08/24:000261-269;

(Past Performance Questionnaire): PP:08/24:000270-275

(Employment Offer Letter to White):PP:08/24:000276;

(Beowulf and Purchase Order):PP:08/24:000277-279;

(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431

- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

9. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction, agreement, negotiation, or course of conduct between you and MSI including, without limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from MSI.

RESPONSE:

Objection, this question as phrased is duplicative of the previous requests numbers 1 through 4 and has already been and answered. This request is also duplicative of number 8. Due to Defendant being in control of MSI, any documents and/or communications involving MSI were also with Defendant. Without waiving this objection, Plaintiff answers please see responses to 1 through 4 and 8.

10. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction,

agreement, negotiation, or course of conduct between you and IAS including, without limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from IAS.

RESPONSE:

Objection, this question as phrased is overly broad and seeks information that is irrelevant to this case. There is no time frame for this request. IAS is also not a party to this case. Plaintiff's receipt of remuneration from other sources other than Defendant and MSI is unrelated to the claims in this case and therefore, has no bearing on any issues and/or Plaintiff's claims. Without waiving these objections, please see responses to numbers 1 through 4.

SUPPLEMENT: Without waiving any objections including burdensomeness, Plaintiff responds:

- Spreadsheet regarding gross payments received from MSI to IAS, to White; PP12/25:000610-613
- Plaintiff answers otherwise none.

11. Produce all Documents (including Documents constituting Communications) relating to the formation, organization, and management of IAS including, without limitation, all current and former principals, owners, officers, directors, shareholders, members, managers, and partners of IAS.

RESPONSE:

Objection, this question as phrased is overly broad and seeks information that is irrelevant to this case. There is no time frame for this request. IAS is also not a party to this case. This request is merely a fishing expedition. Plaintiff's receipt of remuneration from other sources other than Defendant and MSI is unrelated to the claims in this case and therefore, has no bearing on Plaintiff's claims. Without waiving these objections, please see responses to numbers 1 through 4.

SUPPLEMENT: None in Plaintiff's Possession.

12. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction, agreement, negotiation, or course of conduct between you and Plaintiff Richard White including, without limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from Plaintiff Richard White.

RESPONSE:

Objection, this question as phrased is overly broad and irrelevant to Plaintiff's claims. There is no time frame pertaining to this request. Also, Plaintiffs' business relationship in terms of remuneration is unrelated to the claims in this case and therefore this request constitutes a fishing expedition.

SUPPLEMENT:

Objection, this question as phrased is confusing as it questions my relationship and my remuneration from myself. By way of further answer, Plaintiff answers none in my possession.

13. Produce all Documents (including Documents constituting Communications) relating to the "new venture that would be formed separately in the United States as Madison Springfield" that you describe in ¶ 17 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1, 2, and 4 pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

14. Produce all Documents (including Documents constituting Communications)

relating to and upon which you rely to support the allegations in ¶ 19 of your Complaint that “Plaintiffs would attend meetings as representatives of Madison Springfield, carry business cards, use MSI emails, discuss all work opportunities and would generally do whatever was necessary for Madison Springfield to meet its contractual obligations with its customers.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1, 2, and 4 pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Without waiving this objection, please also see:

- Business cards
PP:08/24:000002-3
PP:08/24:000280-281

15. Produce all Documents relating to and upon which you rely to support your allegation in ¶ 20 of your Complaint that you “carr[ied] out the contracts Madison Springfield was awarded through IAS.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4 pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

16. Produce all Documents (including Documents constituting Communications) relating to “the understanding” that you refer to in ¶ 21 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4

pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

Please also see:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

17. Produce all Documents (including Documents constituting Communications) relating to the "2013 Stock Option Agreement" that you refer to in ¶ 21 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, including number 16, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Please also see:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

SUPPLEMENT:

- Riesen correspondence regarding 2013 Stock Option Agreements; PP12/25:000036-38

18. Produce all Documents (including Documents constituting Communications) relating to the “2016 Stock Option Agreement” that you refer to in ¶ 25 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, including numbers 16, and 17, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Please also see:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

SUPPLEMENT:

- Mr. Morris’ letters, Bates numbers PP:08/24:000235-236
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38

- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

19. Produce all Documents (including Documents constituting Communications) relating to the "pre-formation agreement" between Defendant and Plaintiffs that you refer to in ¶ 26 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, including numbers 16 through 18, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

SUPPLEMENT:

- Communication with Defendant that IAS and MSI are not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353; two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

20. Produce all Documents (including Documents constituting Communications)

relating to Defendant's interest in, and efforts taken in furtherance of, selling MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Please also see:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441

SUPPLEMENT:

- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP:
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

21. Produce all Documents (including Documents constituting Communications) between you and any Person regarding the potential sale or merger of MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4,

pertaining to the complaint and has already been answered. Also, as phrased, this request seeks information that constitutes the attorney client and/or work product privilege. Without waiving said objections, please see correspondence with Defendant answered in those responses.

SUPPLEMENT:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

22. Produce all Documents (including Documents constituting Communications) relating to statements Defendant made to you with respect to the value of MSI, the potential sale price of MSI, amounts Defendant would receive upon the sale of MSI, and amounts you would receive upon the sale of MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including number 20, and has already been answered. Without waiving said objection, please refer to those responses.

SUPPLEMENT:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005; 12-14

23. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support the allegations in ¶ 34 of your Complaint that “[Defendant] made a decision not to distribute excess cash received on a project to IAS to make Madison Springfield look more valuable to prospective purchasers “

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 20 and 22; and has already been answered. Without waiving said objection, please refer to those responses.

SUPPLEMENT:

- (Beowulf and Purchase Order):PP:08/24:000277-279;
- Communications regarding Mare Nova:

PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

24. Produce all Documents (including Documents constituting Communications) relating to the “Bonus Agreement” you refer to in ¶¶ 41 - 43 of your Complaint including, without limitation, all Documents relating to or evidencing any fees, commissions, payments or other financial remuneration you received thereunder.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 8 through 9, and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris’ letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 002437-41
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- 12/25:000042-43

25. Produce all Documents (including Documents constituting Communications) relating to your efforts to obtain the “merger documents” that you reference in ¶¶ 46 and 51 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 20-23 and has already been asked and answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Correspondence between parties regarding merger's terms; PP:12/25:000012-14

26. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶ 52 of your Complaint that Defendant "misrepresented the actual deal terms and deprived White and Everington what they are entitled to" from the sale of MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen that parties are accomplishing great things

together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40

- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50 million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005; 12-14

27. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶¶ 54 and 60 of your Complaint that Defendant and Plaintiffs "agreed that they would share the value derived from any sale of the business venture that ultimately became Madison Springfield."

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

SUPPLEMENT:

- Bonus Agreement, Bates numbers PP:08/24:000004-6, 97-99,
- Confidentiality Agreement, Bates numbers PP:08/24:000032-34, 198-205
- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Employment Offer Letter to White, PP:08/24:000276
- Communications regarding MSI Sale PP:08/24:000359-366, 000380,

- 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Communication with Defendant that IAS and MSI not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353;
 - Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
 - 001962 (Communication regarding Everington's qualifications);
 - 002148-2158 (Communications with Defendant but with attorney/client redactions)
 - Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431
 - Business cards
PP:08/24:000002-3
PP:08/24:000280-281

Additional Documents:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18

- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

28. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation that you would realize or that you were entitled to receive 25% of the value derived from the sale of MSI as you allege in ¶¶ 55, 57 and 61 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint, including number 18 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Bonus Agreement, Bates numbers PP:08/24:000004-6, 97-99,
- Confidentiality Agreement, Bates numbers PP:08/24:000032-34, 198-

205

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Employment Offer Letter to White, PP:08/24:000276
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Communication with Defendant that IAS and MSI not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353;
- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431
- Business cards
PP:08/24:000002-3
PP:08/24:000280-281

Additional documents:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3

- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- MSI Proposal; PP: 12/25:000056-71
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

29. Produce all Documents (including Documents constituting Communications)

relating to the "oral understanding" you refer to in ¶ 56 of the Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:

PP:08/24:000004-11

PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;

- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- MSI Proposal; PP: 12/25:000056-71

30. Produce all Documents (including Documents constituting Communications) relating to any cash, payments, stock, or other financial remuneration that you allege Defendant received or stated he would receive from the sale of MSI including the “cash compensation as well as significant stock holdings in the acquiring company” that you allege Defendant received in ¶ 71 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Mr. Morris’ letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant’s produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen correspondence that deal was worth \$12 million; PP:

12/25:000005

- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.

31. Produce all Documents (including Documents constituting Communications) relating to the "relationship of trust and confidence" you describe in ¶ 62 of your Complaint, including your placement of such "trust and confidence" in Defendant as you allege in ¶¶ 63 and 76 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:

PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

32. Produce all Documents (including Documents constituting Communications) relating to your allegation in ¶ 64 of your Complaint that Plaintiffs “agreed to allow the business they and [Defendant] were creating to be 100% owned by [Defendant].”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

33. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶ 68 of your Complaint that you “carr[ied] out the contracts Madison Springfield was awarded through IAS.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

34. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶ 68 of your Complaint that you “provided substantial benefits to [Defendant] in the form of [your] work and services provided over many years to help [Defendant] build up Madison Springfield into a successful company.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including number 33 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

35. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegations in ¶¶ 69 and 70 of your

Complaint that Defendant “appreciated” and “acknowledged” the “benefits” you provided to him.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 33 through 34 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington’s correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of

IAS; PP: 12/25:000051

- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

36. Produce all Documents (including Documents constituting Communications) relating to the “agreement reached” by Defendant and Plaintiffs “prior to formation of Madison Springfield” that you refer to in ¶ 72 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001

- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

37. Produce all Documents relating to the "value of [Plaintiffs'] investment and services" that you refer to in ¶ 72 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 33 through 35 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

38. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegations in ¶ 77 of your Complaint that Defendant “manipulated that reliance for his own personal gain.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-

2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;

- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

39. Produce all Documents (including Documents constituting Communications) relating to or evidencing your ownership interest in MSI including, without limitation, Documents relating to: (i) stock or share certificates owned by you; (ii) your capital accounts with MSI; (iii) capital contributions of money or other property you made to MSI; (iv) dividends or distributions you received from MSI; (v) your sharing in MSI’s profits or losses; (vi) Schedule K-1s or other tax documents you received from MSI; (vii) authority to bind or make decisions on behalf of MSI; (viii) tax payments and reimbursements you made relating to MSI’s earned income; and (ix) MSI’s organizational documents (*e.g.*, Articles of Incorporations, Bylaws, Shareholders or Stockholder Agreements, etc.).

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including 16 through 17 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11

PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;

- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

40. Produce all Documents identified in your disclosures required by Fed. R. Civ. P. 26(a).

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265

41. Produce all Documents (including, but not limited to, fee agreements, reports, and correspondence) provided to, received from, or prepared by each expert witness identified by you in connection with the disclosures required by Fed. R. Civ. P. 26(a)(2)(A).

RESPONSE:

Currently none.

42. Produce all Documents and Communications constituting or relating to an admission by Defendant of facts, allegations, and claims in your Complaint including, without limitation, your dissemination or disclosure of such Documents and Communications.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objections, please refer to those responses. Further this request as phrased seeks the attorney client and/or work product privilege.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)

- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

43. Produce all Documents and Communications constituting or relating to witness statements obtained by you with respect to the allegations, claims, and defenses in this Action.

RESPONSE:

Currently none.

44. Produce all Documents relating to any taxes you filed including, without limitation, all Documents that you filed in support thereof or that you provided to any Person who provided accounting or tax services to you or on your behalf.

RESPONSE:

Objection, this question as phrased is overly broad and seeks information that has no bearing on the matters in this case. There is also no time frame for this request. Plaintiff's taxes are not at issue and are irrelevant. Therefore, this request as phrased is merely a fishing expedition.

SUPPLEMENT:

Without waiving any objection, including the obtainment of this information would be highly burdensome due to the nature of the request from a foreign country, Plaintiff answers:

- Spreadsheet regarding gross payments received from MSI to IAS; PP:12/25:000610-613
- Plaintiff answers otherwise none in Plaintiff's possession.

45. Produce all Documents that you could proffer as evidence or for any other purpose at any hearing in or at the trial of this Action.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to responses 1 through 45.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on December 30, 2025, a true and correct copy of the foregoing has been served via email to all counsel of record and to the following parties:

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Pro Hac Vice
Counsel for Defendant Timothy J. Risen

/s/ Cynthia C. Sonnemann
Attorney

**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

ALEXIS EVERINGTON
and RICHARD WHITE

Plaintiffs,
v.

TIMOTHY J. RIESEN

Defendant.

Case No. 8:23-cv-02386-JLB-NHA

**PLAINTIFF EVERINGTON'S SUPPLEMENTAL RESPONSE TO
DEFENDANT'S FIRST REQUEST FOR PRODUCTION**

Alexis Everington, by and through undersigned counsel, hereby serves his supplemental response to Defendant's First Request for Production and in support thereof states as follows:

FIRST REQUEST FOR PRODUCTION

Discovery is ongoing and Everington expressly reserves the right to supplement these responses.

1. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count I in your Complaint.

RESPONSE:

Please see Documents including (and responses to numbers 2, 3, and 4):

- Bonus Agreement, Bates numbers PP:08/24:000004-6, 97-99,
- Confidentiality Agreement, Bates numbers PP:08/24:000032-34, 198-205
- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Employment Offer Letter to White, PP:08/24:000276
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Communication with Defendant that IAS and MSI not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353;

SUPPLEMENT:

- Everington's Employment Offer dated October 15, 2013; PP12/25:000126
- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18
- MSI travel policy; PP: 12/25:000020-28
- MSI Notice of Intervention and Riesen correspondence; PP: 12/25:000029-32
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI

employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051

- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- MSI Proposal; PP: 12/25:000056-71
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115
- Riesen correspondence providing audit of MSI to Plaintiffs; PP12/25:000116-125, 129-138, 218-220
- Timesheet for Alexis and for Scientists; PP12/25:000128, 139
- MSI Proposal for Macedonia, listing Plaintiffs as Directors; PP12/25:000140-170, 187-217
- MSI Proposal for Asset Recovery, listing Everington as Managing Principal; PP12/25:000171-186
- Correspondence between parties regarding UK team, Mexico budget; PP12/25:000221-233
- Correspondence between parties, Riesen stating will use remaining funds for marketing or slush fund; PP12/25:000234-238
- Correspondence between parties and other MSI employees regarding: edits for Thales claim, projects in 2013; Odierno contract 2015, Riesen creating invoices: PP12/25:000239-252
- Riesen creating invoices: PP12/25:000251
- MSI potential buyer tracking: PP12/25:000074-77
- Confidential Premise/MSI Market Research; PP12/25:000078-84
- The McLean Group discussion materials for MSI; PP12/25:000085-115
- Riesen correspondence regarding Plaintiffs' ownership interest in MSI and GRAP; PP12/25:000001-4, 7
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005;
- Correspondence White regarding company structure; PP12/25:00006
- Correspondence regarding DCR Mine Project; PP12/25:00015 PP12/25:000005-19
- MSI Corporate Travel Policy; PP12/25:000020-28
- Riesen providing Intervention information to Plaintiffs; PP12/25:000029-34
- Riesen correspondence regarding 2013 Stock Option Agreements; PP12/25:000036-38
- Correspondence regarding parties accomplishing great things;

PP12/25:000039-40

- Correspondence regarding Riesen's call with Premise; PP12/25:000042-43
- Riesen correspondence regarding 2021 is the year to sell; PP12/25:000045
- Attorney Morris letter dated August 3, 2022; PP12/25:000046-49
- Correspondence regarding using an MSI template; PP12/25:000051-52
- Riesen Correspondence that regards them as a collaboration and not as vendor/client; PP12/25:000054-55
- Terrorism Proposal; PP12/25:000056-71

2. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count II in your Complaint.

RESPONSE:

Please see responses to numbers 1, 3, and 4.

Please also see the following:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;

(Beowulf and Purchase Order):PP:08/24:000277-279;
(MSI documents, Research Assessment Program): PP:08/24:002364-
2397, 002398-2431

- Business cards
PP:08/24:000002-3
PP:08/24:000280-281

SUPPLEMENT:

- Everington's Employment Offer dated October 15, 2013; PP12/25:000126
- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million, PP:12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence – Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The

McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005; 12-14

3. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count III in your Complaint.

RESPONSE:

Please see responses to numbers 1, 2 and 4.

Please also see:

- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(Beowulf and Purchase Order):PP:08/24:000277-279;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431
- Business cards
PP:08/24:000002-3
PP:08/24:000280-281
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen correspondence that deal was worth \$12 million, PP:12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Chertoff Documents Regarding MSI presentation and Merger with

related documents; Bates Numbered: CHERTOFF_000001-et seq.

- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005, 12-14

4. Produce all Documents upon which you rely to support the facts and allegations that form the basis for Count IV in your Complaint.

RESPONSE:

Please see responses to numbers 1-3.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(Beowulf and Purchase Order):PP:08/24:000277-279;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005, 12-14

5. Produce all Documents relating to or relied upon by you in preparing your responses to Defendant's First Set of Interrogatories.

RESPONSE:

Objection, this question is duplicative of the previous requests numbers 1 through 4. Plaintiff relied upon all documents being produced in answering the interrogatories. Without waiving said objection, please see responses numbers 1 through 4.

6. Produce all Documents constituting Communications between you and any Person relating to your Complaint and any allegations, claims and defenses in this Action.

RESPONSE:

Objection, this question as phrased asks for communications involving the attorney client and/or work product privilege.

7. Produce all diaries, journals, calendars, day-timers, or similar Documents that you have maintained since January 1, 2010.

RESPONSE:

Objection, this question as phrased asks for communications involving the attorney client and/or work product privilege. Without waiving this objection, Plaintiff answers discovery is ongoing and will update this response if there are responsive documents.

8. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction, agreement, negotiation, or course of conduct between you and Defendant including, without limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from Defendant.

RESPONSE:

Objection, this question as phrased is duplicative of the requests numbers 1 through 4 and have already been asked and answered. Without waiving this objection, Plaintiff answers please see responses to 1 through 4.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):

PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(Beowulf and Purchase Order):PP:08/24:000277-279;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431

- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

9. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction, agreement, negotiation, or course of conduct between you and MSI including, without limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from MSI.

RESPONSE:

Objection, this question as phrased is duplicative of the previous requests numbers 1 through 4 and has already been and answered. This request is also duplicative of number 8. Due to Defendant being in control of MSI, any documents and/or communications involving MSI were also with Defendant. Without waiving this objection, Plaintiff answers please see responses to 1 through 4 and 8.

10. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction, agreement, negotiation, or course of conduct between you and IAS including, without

limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from IAS.

RESPONSE:

Objection, this question as phrased is overly broad and seeks information that is irrelevant to this case. There is no time frame for this request. IAS is also not a party to this case. Plaintiff's receipt of remuneration from other sources other than Defendant and MSI is unrelated to the claims in this case and therefore, has no bearing on any issues and/or Plaintiff's claims. Without waiving these objections, please see responses to numbers 1 through 4.

SUPPLEMENT: Without waiving any objections, Plaintiffs responds:

- Invoices sent by Riesen to IAS; PP12/25:000253-609, 0000009-11

11. Produce all Documents (including Documents constituting Communications) relating to the formation, organization, and management of IAS including, without limitation, all current and former principals, owners, officers, directors, shareholders, members, managers, and partners of IAS.

RESPONSE:

Objection, this question as phrased is overly broad and seeks information that is irrelevant to this case. There is no time frame for this request. IAS is also not a party to this case. This request is merely a fishing expedition. Plaintiff's receipt of remuneration from other sources other than Defendant and MSI is unrelated to the claims in this case and therefore, has no bearing on Plaintiff's claims. Without waiving these objections, please see responses to numbers 1 through 4.

SUPPLEMENT: Please see below. Other than what has been produced, Plaintiff otherwise answers none in his possession.

- IAS 2017 Trade License; PP12/25:000127

12. Produce all Documents (including Documents constituting Communications) relating to each relationship, affiliation, employment, contract, transaction, agreement, negotiation, or course of conduct between you and Plaintiff Richard White including, without limitation, with respect thereto all compensation, salary, fees, payments, stock, ownership interest, wages, commissions, bonuses, awards, reimbursements, grants, fringe benefits, or other financial remuneration you received from Plaintiff Richard White.

RESPONSE:

Objection, this question as phrased is overly broad and irrelevant to Plaintiff's claims. There is no time frame pertaining to this request. Also, Plaintiffs' business relationship in terms of remuneration is unrelated to the claims in this case and therefore this request constitutes a fishing expedition.

SUPPLEMENT:

Objection, this question as phrased questions the relationship with Plaintiff White, but as previously explained through discovery and in my deposition, Plaintiff White was my partner with Defendant in the formation of MSI. I have received no financial remunerations from Plaintiff White. I also discussed in my deposition that Plaintiff White was a consultant for IAS, but he is currently on sabbatical. By way of further answer, regarding documents, none is in my possession.

13. Produce all Documents (including Documents constituting Communications) relating to the "new venture that would be formed separately in the United States as Madison Springfield" that you describe in ¶ 17 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1, 2, and 4 pertaining to the complaint and has already been answered. Without waiving this objection,

please see correspondence with Defendant answered in those responses.

14. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support the allegations in ¶ 19 of your Complaint that “Plaintiffs would attend meetings as representatives of Madison Springfield, carry business cards, use MSI emails, discuss all work opportunities and would generally do whatever was necessary for Madison Springfield to meet its contractual obligations with its customers.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1, 2, and 4 pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Without waiving this objection, please also see:

- Business cards
PP:08/24:000002-3
PP:08/24:000280-281

15. Produce all Documents relating to and upon which you rely to support your allegation in ¶ 20 of your Complaint that you “carr[ied] out the contracts Madison Springfield was awarded through IAS.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4 pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

16. Produce all Documents (including Documents constituting Communications)

relating to “the understanding” that you refer to in ¶ 21 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4 pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

Please also see:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

17. Produce all Documents (including Documents constituting Communications) relating to the “2013 Stock Option Agreement” that you refer to in ¶ 21 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, including number 16, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Please also see:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

SUPPLEMENT:

- Riesen correspondence regarding 2013 Stock Option Agreements; PP12/25:000036-38

18. Produce all Documents (including Documents constituting Communications) relating to the “2016 Stock Option Agreement” that you refer to in ¶ 25 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, including numbers 16, and 17, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Please also see:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161

SUPPLEMENT:

- Mr. Morris’ letters, Bates numbers PP:08/24:000235-236
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005

- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

19. Produce all Documents (including Documents constituting Communications) relating to the "pre-formation agreement" between Defendant and Plaintiffs that you refer to in ¶ 26 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, including numbers 16 through 18, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

SUPPLEMENT:

- Communication with Defendant that IAS and MSI are not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353; two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40

- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

20. Produce all Documents (including Documents constituting Communications) relating to Defendant's interest in, and efforts taken in furtherance of, selling MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving this objection, please see correspondence with Defendant answered in those responses.

Please also see:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441

SUPPLEMENT:

- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP:
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

21. Produce all Documents (including Documents constituting Communications) between you and any Person regarding the potential sale or merger of MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Also, as phrased, this request seeks information that constitutes the attorney client and/or work product privilege. Without waiving said objections, please see correspondence with Defendant answered in those responses.

SUPPLEMENT:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50 million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

22. Produce all Documents (including Documents constituting Communications) relating to statements Defendant made to you with respect to the value of MSI, the potential sale price of MSI, amounts Defendant would receive upon the sale of MSI,

and amounts you would receive upon the sale of MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including number 20, and has already been answered. Without waiving said objection, please refer to those responses.

SUPPLEMENT:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005; 12-14

23. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support the allegations in ¶ 34 of your Complaint that “[Defendant] made a decision not to distribute excess cash received on a project to IAS to make Madison Springfield look more valuable to prospective purchasers “

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 20 and 22; and has already been answered. Without waiving said objection, please refer to those responses.

SUPPLEMENT:

- (Beowulf and Purchase Order):PP:08/24:000277-279;
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

24. Produce all Documents (including Documents constituting Communications) relating to the “Bonus Agreement” you refer to in ¶¶ 41 - 43 of your Complaint including, without limitation, all Documents relating to or evidencing any fees, commissions, payments or other financial remuneration you received thereunder.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 8 through 9, and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris’ letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 002437-41
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012

- 12/25:000042-43

25. Produce all Documents (including Documents constituting Communications) relating to your efforts to obtain the “merger documents” that you reference in ¶¶ 46 and 51 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 20-23 and has already been asked and answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris’ letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Correspondence between parties regarding merger’s terms; PP:12/25:000012-14

26. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶ 52 of your Complaint that Defendant “misrepresented the actual deal terms and deprived White and Everington what they are entitled to” from the sale of MSI.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris’ letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50 million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.
- Riesen correspondence regarding MSI sale was \$12million; PP12/25:000126; PP12/25:000005; 12-14

27. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶¶ 54 and 60 of your Complaint that Defendant and Plaintiffs "agreed that they would share the value derived from any sale of the business venture that ultimately became Madison Springfield."

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

SUPPLEMENT:

- Bonus Agreement, Bates numbers PP:08/24:000004-6, 97-99,
- Confidentiality Agreement, Bates numbers PP:08/24:000032-34, 198-205
- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Employment Offer Letter to White, PP:08/24:000276
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Communication with Defendant that IAS and MSI not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353;
- Communications with Defendant including those involving projects: PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431
- Business cards
PP:08/24:000002-3
PP:08/24:000280-281

Additional Documents:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only

two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001

- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

28. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation that you would realize or that you were entitled to receive 25% of the value derived from the sale of MSI as you allege in ¶¶ 55, 57 and 61 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint, including number 18 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Bonus Agreement, Bates numbers PP:08/24:000004-6, 97-99,
- Confidentiality Agreement, Bates numbers PP:08/24:000032-34, 198-205
- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Employment Offer Letter to White, PP:08/24:000276
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Communication with Defendant that IAS and MSI not two separate entities; PP:08/24:001869-70, 002313-2315, 002351-2353;
- Communications with Defendant including those involving projects: PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Related Documents pertaining to MSI:
(Premise, MSI and Chertoff, Department of AirForce related documents):
PP08/24:000001, PP:08/24:000012-31, PP:08/24:000035-96, 000100-197, 000206-213, 000237-250, 000251-260;
(MSI employee handbook): PP:08/24:000261-269;
(Past Performance Questionnaire): PP:08/24:000270-275
(Employment Offer Letter to White):PP:08/24:000276;
(MSI documents, Research Assessment Program): PP:08/24:002364-2397, 002398-2431

- Business cards
PP:08/24:000002-3
PP:08/24:000280-281

Additional documents:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- MSI Proposal; PP: 12/25:000056-71
- Confidential documents pertaining to MSI's Potential Buyer Tracking; Premise and MSI regarding Acquisition Considerations; and The McLean Group's Engagement Proposal for MSI; PP: 12/25:000074-115

29. Produce all Documents (including Documents constituting Communications) relating to the "oral understanding" you refer to in ¶ 56 of the Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43

- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- MSI Proposal; PP: 12/25:000056-71

30. Produce all Documents (including Documents constituting Communications) relating to any cash, payments, stock, or other financial remuneration that you allege Defendant received or stated he would receive from the sale of MSI including the “cash compensation as well as significant stock holdings in the acquiring company” that you allege Defendant received in ¶ 71 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client

redactions)

- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236

SUPPLEMENT:

- Defendant's produced documents of Merger Agreement including Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen correspondence that deal was worth \$12 million; PP: 12/25:000005
- Riesen correspondence regarding the deal and payment of remaining \$4 million; PP: 12/25:000012
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence regarding his call with Premise, PP: 12/25:000042-43
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP: 12/25:000044-45
- Chertoff Documents Regarding MSI presentation and Merger with related documents; Bates Numbered: CHERTOFF_000001-et seq.

31. Produce all Documents (including Documents constituting Communications) relating to the "relationship of trust and confidence" you describe in ¶ 62 of your Complaint, including your placement of such "trust and confidence" in Defendant as you allege in ¶¶ 63 and 76 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

32. Produce all Documents (including Documents constituting Communications) relating to your allegation in ¶ 64 of your Complaint that Plaintiffs “agreed to allow the business they and [Defendant] were creating to be 100% owned by [Defendant].”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:

PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

33. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶ 68 of your Complaint that you “carr[ied] out the contracts Madison Springfield was awarded through IAS.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

34. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegation in ¶ 68 of your

Complaint that you “provided substantial benefits to [Defendant] in the form of [your] work and services provided over many years to help [Defendant] build up Madison Springfield into a successful company.”

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including number 33 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington’s correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen Correspondence that should sell MSI in 2021 and worth \$40-50million; Riesen Correspondence regarding his call with Premise, PP:

12/25:000044-45

- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

35. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegations in ¶¶ 69 and 70 of your Complaint that Defendant “appreciated” and “acknowledged” the “benefits” you provided to him.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 33 through 34 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

36. Produce all Documents (including Documents constituting Communications) relating to the "agreement reached" by Defendant and Plaintiffs "prior to formation of Madison Springfield" that you refer to in ¶ 72 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);

- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Merger Consideration at Bates Numbers RIESEN AEO-478-584, 603
- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

37. Produce all Documents relating to the "value of [Plaintiffs'] investment and services" that you refer to in ¶ 72 of your Complaint.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including numbers 33 through 35 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11

PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;

- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence between parties regarding budget for a project; PP: 12/25:000014-18
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

38. Produce all Documents (including Documents constituting Communications) relating to and upon which you rely to support your allegations in ¶ 77 of your Complaint that Defendant "manipulated that reliance for his own personal gain."

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

39. Produce all Documents (including Documents constituting Communications) relating to or evidencing your ownership interest in MSI including, without limitation, Documents relating to: (i) stock or share certificates owned by you; (ii) your capital accounts with MSI; (iii) capital contributions of money or other property you made to MSI; (iv) dividends or distributions you received from MSI; (v) your sharing in MSI's profits or losses; (vi) Schedule K-1s or other tax documents you received from MSI; (vii) authority to bind or make decisions on behalf of MSI; (viii) tax payments and reimbursements you made relating to MSI's earned income; and (ix) MSI's organizational documents (*e.g.*, Articles of Incorporations, Bylaws, Shareholders or Stockholder Agreements, etc.).

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint including 16 through 17 and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432–2483;
- 001962 (Communication regarding Everington’s qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

40. Produce all Documents identified in your disclosures required by Fed. R. Civ.

P. 26(a).

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to those responses.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11

PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;

- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

41. Produce all Documents (including, but not limited to, fee agreements, reports, and correspondence) provided to, received from, or prepared by each expert witness identified by you in connection with the disclosures required by Fed. R. Civ. P. 26(a)(2)(A).

RESPONSE:

Currently none.

42. Produce all Documents and Communications constituting or relating to an admission by Defendant of facts, allegations, and claims in your Complaint including, without limitation, your dissemination or disclosure of such Documents and Communications.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objections, please refer to those responses. Further this request as phrased seeks the attorney client and/or work product privilege.

Please also see:

- Communications with Defendant including those involving projects:
PP:08/24:000004-11
PP:08/24:000282-472, 000567-703, 000704-865, 000866-1042, 001043-1569, 001570-1701, 001702-1762, 001763-1801, 001802-1842, 001843-1895, 001896-1944, 001845-1994, 001996-2045, 002046-2099; 002100-2147, 002162-2207 002208-2264, 002265-2325, 002326-2363, 002432-2483;
- 001962 (Communication regarding Everington's qualifications);
- 002148-2158 (Communications with Defendant but with attorney/client redactions)
- Communications regarding Mare Nova:
PP:08/24:00382,769, 1240-1242, 1257-1261, 1265;

SUPPLEMENT:

- Riesen email to Plaintiffs dated 4 April 2014 that IAS and MSI are only two separate companies in spirit and Riesen part of IAS; PP: 12/25:000001
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55

43. Produce all Documents and Communications constituting or relating to witness statements obtained by you with respect to the allegations, claims, and defenses in this Action.

RESPONSE:

Currently none.

44. Produce all Documents relating to any taxes you filed including, without limitation, all Documents that you filed in support thereof or that you provided to any Person who provided accounting or tax services to you or on your behalf.

RESPONSE:

Objection, this question as phrased is overly broad and seeks information that has no bearing on the matters in this case. There is also no time frame for this request. Plaintiff's taxes are not at issue and are irrelevant. Therefore, this request as phrased is merely a fishing expedition.

SUPPLEMENT: Without waiving any objections, Plaintiff answers none, as I do not file taxes as a resident of Monaco.

45. Produce all Documents that you could proffer as evidence or for any other purpose at any hearing in or at the trial of this Action.

RESPONSE:

Objection, this question as phrased is repetitive of requests 1 through 4, pertaining to the complaint and has already been answered. Without waiving said objection, please refer to responses 1 through 45.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on December 30, 2025, a true and correct copy of the foregoing has been served via email to all counsel of record and to the following parties:

Erik Johanson, Esq.
Florida Bar No. 106417
(Lead Trial Counsel)
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Pro Hac Vice
Counsel for Defendant Timothy J. Risen

/s/ Cynthia C. Sonnemann
Attorney

**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

ALEXIS EVERINGTON
and RICHARD WHITE

Plaintiffs,
v.

TIMOTHY J. RIESEN

Defendant.

Case No. 8:23-cv-02386-JLB-NHA

**PLAINTIFF RICHARD WHITE'S ANSWERS TO DEFENDANT'S FIRST SET
OF INTERROGATORIES**

Plaintiff, Richard White, by and through his undersigned counsel, hereby serves his Answers to Defendant's First of Interrogatories and in support thereof states as follows:

INTERROGATORIES

Plaintiff submits that discovery is ongoing and expressly reserves the right to amend and/or supplement the answers to each interrogatory.

1. Identify all Persons who have provided information or otherwise assisted you in answering these Interrogatories. For each Person that you Identify, provide the specific Interrogatory such Person provided information for and the substantive information provided with respect to each specific Interrogatory.

ANSWER: Please see each interrogatory for the substantive answer.

The following people aided in providing answers to each interrogatory:

Richard White
Alexis Everington

Dale Sisco and Cynthia Sonnemann
Sisco-Law
Counsel for Plaintiffs
777 S. Harbour Island Blvd.
Tampa, FL 33602

2. Identify all Persons whom you believe may have possession, custody, or control of any Documents (whether or not any such Documents are claimed to be privileged) upon which an allegation, claim, or defense in the Action is based. For each Person that you Identify, provide a description of each Document that is in such Person's possession, custody, or control.

ANSWER:

With respect to each identified person below, discovery is ongoing, and Plaintiff expressly reserves the right to amend or supplement this response.

Alexis Everington: the 2013 stockholder agreement giving an option to purchase 10% of the outstanding issued and common stock being 100 shares of common stock of MSI at \$1.00 per share; the 2016 stock option for 25% of the outstanding and issued common stock, being 250 shares of the common stock of MSI, fully paid and non-assessable at a price of \$1.00 per share.

Richard White: the 2013 stockholder agreement giving an option to purchase 10% of the outstanding issued and common stock being 100 shares of common stock of MSI at \$1.00 per share; the 2016 stock option for 25% of the outstanding and issued common stock, being 250 shares of the common stock of MSI, fully paid and non-assessable at a price of \$1.00 per share.

Timothy Riesen: the sale document(s) behind the sale of MSI to Premise (and/or any intermediary companies).

Timothy Riesen's lawyer(s) used for the sale of MSI to Premise (and/or any intermediary companies).

Timothy Riesen's accountants used for the sale of MSI to Premise (and/or any intermediary companies).

Chertoff: the M&A specialist broker used for the sale of MSI to Premise (and/or any intermediary companies).

3. Identify and Describe in full detail all Communications, whether written or oral, between you and any Person relating to your Complaint and any allegations, claims and defenses in this Action.

ANSWER:

Objection. This interrogatory, as phrased, is vague and overly broad as it seeks communications between the Plaintiff and "any person." Moreover, the interrogatory as phrased seeks information containing the attorney client and/or attorney work product privilege.

SUPPLEMENT:

Without waiving any objection, Plaintiff answers that he spoke with his attorneys regarding the Amended Complaint which is protected by the attorney-client privilege. Plaintiff also answered questions in response to opposing counsel inquiries during his deposition regarding the Complaint. Plaintiff otherwise answers none.

4. Identify and Describe in full detail all contracts, agreements, arrangements, and relationships that you have had or currently have with MSI.

ANSWER:

Please refer to the Complaint filed in this action setting forth the contracts, agreements, arrangements and relationships that Plaintiffs have had with Defendant and MSI. Please also refer to the answers in interrogatory number 2.

Additionally, Plaintiff submits that discovery is ongoing and expressly reserves the right to supplement this interrogatory.

Plaintiff also answers that Plaintiffs and Defendant worked together as partners in the business of developing, working and ensuring that MSI would flourish into a successful business that would cultivate and capture various profitable projects around the world. Plaintiffs successfully worked on over eighty projects spanning approximately forty countries and valued at least at forty-two million dollars. The goal between the partners was to sell MSI at a profitable margin. Also, notably and specific to the sale of MSI:

1. Plaintiffs and Defendant had very regular communications about potential buyers, valuations, and strategies towards a sale that would not have occurred between individuals that did not have a partnership,
2. Defendant shared documents about potential buyers, valuations and strategies that would not have been shared with individuals that did not have a partnership,
3. Defendant painted a picture of Plaintiffs' essential involvement towards a sale (and subsequent remuneration after the sale) of MSI.

SUPPLEMENT:

By way of further supplement, Plaintiff answers that all contracts and agreements have already been produced during discovery. The agreements and contracts include:

- Plaintiff was brought into an oral partnership agreement with Mr. Everington and Defendant to form MSI based on his network and connections in multiple foreign countries. The understanding was that the three men would all work hard to build a successful company and later there would be a large payment of money he earned from the sale that he could retire on. Mr. White's portion of the sale would be twenty-five percent of the profits.
- An offer of employment from MSI dated October 15, 2013

- o This was a formality in establishing the arrangement between Mr. White and Defendant that he was an employee in the formal partnership arrangement they had. This was the first step in receiving stock options in the company to formalize their partnership.
- An offer of employment for dated April 11, 2015
 - o This employment agreement may have been a result of the GRAP contract's requirement. Despite this offer of employment, Plaintiff considered himself as an employee and partner MSI at all times.
- A stock option agreement dated November 12, 2013
 - o This agreement was a formality in Mr. White's partnership agreement with Defendant that formalized he had ten percent ownership in MSI. Previously, the parties were unsure if MSI would be a viable business. The stock option agreement was a result of the three men discussing how to formalize their partnership agreement so that he and Mr. Everington could benefit from a sale of the company later in the future.
- A stock option agreement dated November 21, 2016
 - o This agreement was to increase Mr. White's ownership interest in MSI from ten percent to twenty-five percent due to his unique and enormous contribution to building MSI.
- Establishment of Mare Nova in Monaco was to acquire real estate under a real estate project for a client. The company never conducted business because the seed money for it never materialized.
- Presently Plaintiff has no other agreements with MSI

5. Identify and Describe in full detail all business relationships you have had or currently have with IAS. For each business relationship that you Identify and Describe, include the following information in your response (a) a description of the character of the business relationship(s) (*e.g.*, whether you were an officer, director, employee, agent, representative, founder, owner, member, shareholder, consultant, vendor, service provider, etc.); (b) the dates upon which such business relationship(s)

commenced and ended; (c) a description of the services, duties, and tasks you performed for, on behalf of, or provided to IAS; and (d) the compensation you received from IAS or as a result of the business relationship(s).

ANSWER:

Objection, this interrogatory as phrased seeks information that is irrelevant to this case. In particular, any compensation received by Plaintiff from IAS that is separate from IAS's dealings with MSI has no bearing to this case.

Without waiving said objections, Plaintiff answers that approximately in August 2011, he began working as an independent consultant for IAS conducting research and analysis for various projects around the world including those projects for MSI. As an independent consultant, Plaintiff worked as a program/project manager with full autonomy over projects including the: finance; design; personnel recruitment/training/management; research analysis; and reporting. Plaintiff also assisted in the business development of the company, securing additional projects. Plaintiff is currently on sabbatical from the company with an understanding to return to work in the future.

Plaintiff has conducted and provided analysis of various research projects that contain highly sensitive and confidential intelligence information. Projects were conducted in tandem and for MSI. Many projects were for the United States military as well as other customers. Plaintiffs' unique abilities to conduct and acquire sensitive information helped make MSI attractive to prospective clients, resulting in the company becoming more profitable. Plaintiff also trained and oversaw other MSI members. Based on MSI's payment terms, IAS often operated at extreme financial risk.

SUPPLEMENT:

Without waiving any objections, Plaintiff answers as follows: Plaintiff objects to this interrogatory and restates his objection that this interrogatory as posed has no bearing on this case. Defendant has not asserted any counterclaims against IAS, therefore, any compensation received is not relevant to this case. Furthermore, Defendant also testified that he did not have an ownership interest in IAS underscoring its irrelevancy. *See Riesen Deposition*, p. 12,

ln: 20-21. Plaintiff further answers his working relationship with IAS was based on institutional layering required for the sensitive research work Mr. White was conducting for the partnership agreement with Defendant for MSI. Mr. White would white label the work, meaning the work was done on behalf of MSI, but without the knowledge of the ground researchers for the safety of everyone involved. Mr. White was paid for his work through IAS. IAS had no intrinsic value. Mr. White was paid a percentage of the final number left over months after the project was completed and after all the costs were allocated for the contract. These amounts varied depending on the amount of work he or Mr. Everington performed on the contract, and he and Mr. Everington would determine the percentage split. At times money was lost depending on the work required. Mr. White was a consultant for IAS.

Based on Mr. White's knowledge, he testified that per year 90 percent of IAS's revenue was from MSI. Other work was for the Foreign Office and Ministry of Defense work.

Mr. White estimates that over \$40 million was paid in revenue to IAS from MSI based on the partnership agreement between the parties.

Per the Bonus Agreement, Mr. White received one million dollars that was the first tranche in payment for the total amount Defendant promised to pay him from the merger of MSI due to the terms of the stock option agreement and partnership agreement.

Mr. White is currently on sabbatical and not performing work for IAS.

6. Describe in full detail all facts relating to the "Bonus Agreement" (referenced in ¶¶ 41 and 43 of your Complaint) and any payment(s) you received thereunder including, with respect to such payment(s), the amount of the payment(s) you received, from whom you received such payment(s), the manner in which you received such payment(s), and the date(s) on which you received such payment(s).

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

On June 23, 2022, Cortland Capital Market Services wired IAS two million dollars in relation to a Bonus Agreement. IAS then paid Plaintiff one million dollars. The circumstances surrounding the transaction are set forth in a supplemental letter dated September 13, 2022, from Mr. Roy R. Morris.

SUPPLEMENT:

Mr. White further responds that he received one million dollars through IAS around the time of the sale of MSI. Mr. White trusted Defendant implicitly that the one million dollars was the first tranche in payment of the three million dollars owed to him from the sale of MSI. Mr. White has recently learned that Defendant did not fully represent the terms of the merger agreement.

7. Identify and Describe in full detail all Communications, whether written or oral, between you and any Person relating to the “Bonus Agreement” (referenced in ¶¶ 41 and 43 of your Complaint) and any payment(s) you received thereunder.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Mr. Riesen represented to Plaintiffs that they were each due an additional two million dollars based on the sale of MSI. The additional four million dollars owed to Plaintiffs is referenced in a supplemental letter dated September 13, 2022, from Mr. Roy R. Morris. Based on Mr. Riesen previously not being forthright regarding the sale price of MSI and based on other information, Plaintiffs at a minimum are owed four million dollars, and possibly a greater amount.

SUPPLEMENT:

By way of further answer, Plaintiff objects on the ground that

“any” person is overly broad and fails to set limits to particular persons that are relevant to the claims in this case. Without waiving any objections, Plaintiff further answers that he has spoken to his counsel regarding the Bonus Agreement and these communications are protected by the attorney-client privilege. Plaintiff also answered questions by opposing counsel during his deposition regarding the Bonus Agreement. Mr. White further responds that he received one million dollars through IAS around the time of the sale of MSI. Mr. White had discussions with Mr. Everington and Defendant regarding how he and Mr. Everington could be paid because of the merger. Mr. White trusted Defendant implicitly to make good on their deal regarding the partnership. It was Defendant’s idea to pay Mr. White the first payment through the Bonus Agreement. The vehicle of the Bonus Agreement being used to facilitate the first tranche of the payment although Mr. White found it odd, it did not concern him because he trusted Defendant one hundred percent. Defendant had represented to him and Mr. Everington that MSI had sold for 12 million dollars, that each of them was due three million dollars from the sale and the one million dollars was the first payment owed to Mr. White. Mr. White felt rushed regarding the Bonus Agreement, but he trusted Defendant implicitly to honor the partnership agreement. Plaintiff otherwise answers none.

8. Describe in full detail all of the “substantial benefits” and the “work and services” that you “provided over many years to help [Defendant] build up Madison Springfield into a successful company” as you contend in ¶ 68 of the Complaint. For each of the benefits, work and services that you Describe in your response to this Interrogatory, include (a) the capacity or capacities in which you provided all of the benefits, work, and services to Defendant; (b) the Identity of the Person(s) through which you provided all of the benefits, work and services to Defendant; (c) the dates upon which you provided all of the benefits, work and services to Defendant; and (d) the compensation you received (regardless of the source of such compensation) for all

of the benefits, work and services you provided to Defendant.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiff from the inception of MSI worked to improve and advertise the MSI brand. Plaintiff along with Mr. Riesen and Mr. Everington worked as partners to continually develop MSI into a successful business with the goal of selling MSI for a profitable margin. Plaintiff repeatedly performed in-depth research and analysis of projects throughout the world that were of a sensitive nature for MSI. Plaintiff's dedication to providing the utmost detailed and insightful research and analysis helped build MSI's reputation into being a company that provided invaluable information to MSI's clients. Plaintiff therefore worked on innovative and groundbreaking projects that gained attraction from clients and other key players in the sector. These projects included highly sensitive information in various parts of the world, including unsettled countries. On numerous occasions, Plaintiff worked to build the MSI brand without remuneration with the goal of MSI being sold at a profitable margin. He therefore used personal contacts and his network for MSI to fulfil contracts that Mr. Riesen would not have been able to accomplish on his own. Mr. Riesen continually through conversations including texts and emails stated how invaluable Plaintiff's work contributions were to the various projects and success of MSI. Mr. Riesen also reaffirmed on various occasions that Plaintiffs were partners in MSI. Plaintiff also provided various invaluable work in the development of MSI which included its business development and design. Plaintiff also trained and onboarded MSI staff. IAS was paid approximately over forty million dollars for the work performed for MSI.

Mr. Riesen also provided Plaintiff with an MSI: business card (in which Plaintiff was described as a principal), email address, VPN, wire account and Protonmail, including Pcloud. Mr. Riesen also provided Plaintiffs with MSI newsletters and Plaintiff also attended various annual MSI parties.

PROJECT	COUNTRY	YEAR
ADEN	Yemen	2016
ALLENBY	Yemen	2014
BRADLEY	Syria	2013-2014

CLAUSEWITZ	Jordan	2013-2014
DOOLITTLE	Yemen	2014
EISENHOWER	Somaliland	2014
ELBOW	Iran	2012-2013
ELBOW II	Iran	2013
ELBOW III	Iran	2013
FOCH	Syria	2014
HUDAYDA	Yemen	2015
ITO (TAA)	Ukraine	2014
ITO (FG)	Ukraine	2014
JAFARA	Libya	2015
JOMINI	Mexico / Bahamas	2014
KHATTABI (2 Waves)	Afghanistan	2014
KHATTABI II (3 Waves)	Afghanistan	2015-2016
KHATTABI II	Afghanistan	2015
KSA	KSA	2016
LEDGER	Algeria	2016
MACARTHUR	Syria / Iraq	2015
NAPOLEON	Lebanon	2015-2016
ODINERO	RENAMED WELLINGTON	
PARK (Phase I) (Phase II)	Jordan	2016-2017
QUINAN	Iraq/Syria	2016
RIDGWAY	Yemen	2016
SIKORSKI	Afghanistan	2016
TITO	Yemen	2017
TITO II	Yemen	2017-2018
ULYSSES	Pakistan	2016
WELLINGTON I	Iraq/Syria	2015-2016
WELLINGTON II	Syria	2017
WELLINGTON III	Syria	2017
WELLINGTON IV	Syria	2017-2018
YAMAMOTO	Lebanon	2017
YELLOWTAIL	Syria	2015
ZHUKOV	Iran	2017

AEROSMITH	DPRK	2017-2018
BEATLES	MALI	2018-2019
DOORS	EUROPE WIDE 11 COUNTRIES	2018
ELVIS	GREECE	2018-2019
FOREIGNER	DPRK	2018-2019
GENESIS	IRAN	2018-2019
INXS	PHILIPPINES	2019-2020
METALLICA	IRAN PORTS	2019
NIRVANA	Iran	2018-2019
OZZY	Iran	2018-2019
PRINCE	Iran	2018-2019
QUEEN	Iran	2018-2019
AUDUBON		
BANKSY		
STING	Iran	2018-2019
STING 2	Iran	2019
TESLA	Syria	2018-2019
U2	Syria	2018-2019
WHITESNAKE	Syria	2019
XTC	Yemen	2019
YARDBIRDS	Iran	2019
AHAB	Iran	2019
BEOWULF	Iran (10 Cities)	2109
CAUFIELD	Iran	2019
FINN	Iran WIFI	
GATSBY	Iran Purchases	
HAVISHAM	Africa Photo Project	
LORNA	Iran Area Survey	
MACBETH		
NEMO	30 Country Vital National Security Interests	
OHARA	China Business/Real Estate Survey	
POTTER	Meta - Moldova	
QUIXOTE	Iran Market Research	
ROBINSON	Iran Market Research	

SAWYER	SDP Forum Analysis	
TITO		
URIAH		
VITO		
WONKA		
X		
YEOBRIGHT		
ZORRO		

Please also refer to Plaintiff's Production of documents.

SUPPLEMENT:

By way of further answer, Plaintiff stands by his previous answer, setting forth in detail the work performed for MSI. All work performed was done through the partnership agreement as a collaboration to help Defendant along with Mr. Everington to build MSI into a successful company with the vision that the company would sell for profit in which Mr. White could retire on. Mr. White often worked 20-hour days, worked most weekends, routinely worked all night, and worked every Christmas except for one. Defendant would discuss with Mr. White and Mr. Everington a proposal for work for a potential client, then discuss how the project could be done. Mr. White along with Mr. Everington provided feedback to Defendant concerning the potential cost for the project based on their field team network and how to complete the project both in technical and personnel terms so that Defendant could successfully bid for the contract. Mr. White along with Mr. Everington were involved in all aspects of a project's proposal, including enabling Defendant the ability to engage in a successful bid, seeing the contract through final completion and any needed follow-up required for each project. In furtherance of the partnership, Plaintiff also trained Michele Pestchel, Ingrid De La Fuente and Ira Shurig after they were hired to work for MSI so they would understand the type of research work MSI was performing.

9. Identify and Describe in full detail all facts upon which you rely to support your contention that there was an “oral contract” between you and Defendant as you allege in “Count One” of the Complaint, including in your response (a) the terms, provisions, and conditions of the alleged oral contract; (b) the parties to the alleged oral contract; (c) the substance of all Communications pertaining to the alleged oral contract (including the date, time and location of each Communication); and (d) all actions you took as a result of or in furtherance of such alleged oral contract.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiffs from the inception of MSI worked as partners with Mr. Riesen to continually develop MSI into a successful business. Mr. Riesen represented to Plaintiffs that for them to obtain contracts with the United States government, he would have to form a company in the United States. In other words, IAS would not be able to win defense/security contract bids from the United States government due to being a foreign company. Therefore, all three men worked as partners to continue to perform the work they were already performing, but under the MSI brand. The agreement was that each would derive a benefit from a later sale of MSI. Because all three worked together to promote and build the MSI brand, each Plaintiff eventually had a 25% stock interest in MSI. To develop MSI into a successful enterprise, Plaintiffs continually performed in-depth research and analysis of projects throughout the world that were of a sensitive nature for MSI. Plaintiff's dedication to providing the utmost detailed and insightful research and analysis helped build MSI's reputation into being a company that provided invaluable information to MSI's clients. Mr. Riesen continually through conversations including texts and emails stated how invaluable Plaintiff's work contributions were to the various projects and success of MSI. Mr. Riesen also reaffirmed on various occasions that Plaintiffs were partners in MSI.

Please also see Plaintiffs' document production.

10. Identify and Describe in full detail in non-conclusory language all facts, Communications, and Documents upon which you rely in support of your assertion that a fiduciary relationship existed between you and Defendant, including in your response all facts and circumstances supporting the creation of the alleged fiduciary relationship.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiffs worked as partners with Mr. Riesen to develop MSI into a successful business. Mr. Riesen, as a partner, owed a fiduciary duty to the Plaintiffs to be forthcoming pertaining to the terms of the sale of MSI. Mr. Riesen, although promising to do so, never fully disclosed the terms of the sale to Plaintiffs; thereby thwarting Plaintiffs' ability to ascertain the amount they were rightfully owed for the sale. To date, Mr. Riesen has not fully paid Plaintiffs the amounts owed to them. Please also see Plaintiffs' document production.

11. Identify and Describe in full detail all facts upon which you rely to support your contention that "Riesen and/or his family trusts have been unjustly enriched" as you allege in ¶ 65 of the Complaint.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Per Mr. Roy R. Morris' letter supplemented on September 13, 2022, Mr. Riesen placed MSI shares of stock into a family trust. However, Plaintiffs have still not been paid money owed to them.

12. Describe in full detail the basis upon which you contend in ¶ 34 of your Complaint that "Riesen made a decision not to distribute excess cash received on a

project to IAS to make Madison Springfield look more valuable to prospective purchasers.”

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiffs worked on Project Beowulf in Iran that was priced at 2 million dollars. Plaintiff upon further reflection is unable to specifically recall the exact events or specific details; but Defendant had told Plaintiffs that he was paid 3.5 million dollars for the project and the surplus would be invested in another company to start a business between Plaintiffs and Defendant. It is believed that Defendant sent only 260,000 dollars for the investment, but Plaintiff cannot specifically remember; and Defendant made the unilateral decision to keep the remainder within MSI to raise its profits to two million dollars to make the company appear more attractive for prospective buyers, but Plaintiff does not know for certain if Defendant had done this with the surplus of money.

13. Identify all audio or video recordings you have of Defendant in your possession, custody, or control. For each audio or video recording you Identify, include the following information in your response (a) the Identity of each Person(s) who can be heard in or seen on the recording; (b) Describe the manner in which you obtained each recording; and, if applicable, (c) Identify each Person to whom you have disseminated, disclosed or otherwise shared a recording. For each Person that you Identify in (c), please provide the date on which you disseminated, disclosed or otherwise shared a recording and the purpose of such dissemination or disclosure.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

SUPPLEMENT:

None.

14. Identify all consultants and expert witnesses that you intend to use in a hearing or at the trial of this Action. For each consultant or expert that you Identify (a) provide the name, address, and telephone number of the consultant or expert; (b) state the subject matter upon which the consultant or expert is expected to testify; (c) state the substance of the facts and opinions to which the consultant or expert is expected to testify; and, (d) provide a summary of the grounds for each opinion provided by the consultant or expert.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory. To date, the answer is no experts/consultants have been identified.

15. For *each* category of damages that you claim you are entitled to recover from Defendant in the Action (a) state the amount of damages you claim you are entitled to recover; (b) Identify and Describe in full detail the factual basis upon which you rely to support your claim for such damages; and (c) specify and describe the precise method that you used to calculate or arrive at the amount of damages you claim you are entitled to recover in this Action.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory. Plaintiff also objects to this interrogatory because it is currently premature. Plaintiff has already answered that Mr. Riesen has failed at a minimum to pay two million

dollars to each Plaintiff. Further, without having pertinent information that likely will be forthcoming during future discovery, Plaintiff is unable to answer this interrogatory due to Mr. Riesen previously not being forthcoming regarding MSI's sales terms.

SUPPLEMENT:

To date, Mr. White has not been able to confirm the consideration received by Defendant due to Defendant's objections to requests for production of documents and not answering questions either in his deposition in his personal capacity or as the corporate representative of MSI. Therefore, Mr. White's calculations are based on information that was produced to his attorneys in discovery. Plaintiff will update, if necessary, his damage calculations upon receipt and analysis of additional discovery from Defendant in the event that discovery of additional accounting information reveals that the current calculations are inaccurate due to a change of the valuation of the merger's terms on the date of the merger.

Plaintiffs will also seek pre-judgment and post-judgment interest as permitted by law, including attorneys' fees and costs if permitted by statute, contract or equitable principles. All calculations are based on estimates with current available information at the time of service of this discovery.

1. Count I Breach of Fiduciary Duty:

Calculation: Plaintiff's damages consist of the value of the stock options he was prevented from exercising based on the 2016 Stock option entitling him to a 25% option. Based on the actual sale price of MSI (as opposed to the misrepresented lower price initially disclosed or the claimed value by Defendant), Plaintiff calculates his damages as the difference between what he would have received upon exercise of his stock options at the true sale price versus what he actually received. Damages include losses, but not calculation of pre- and post-judgment interest or punitive damages (subject to the caps set forth in Tex. Civ. Prac. & Rem. Code § 41.008(b), but Plaintiff reserves the right to the addition of these calculations.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the

assumption that interest rates are to be included in the calculation, and Plaintiff reserves the right to the addition of these calculations.

Amount: (based on a calculation of total value of shares of stock on the date of the merger on May 11, 2022)

Total owed: \$6,960,466.60 to Plaintiff White

Calculation: 14,390,145 (Total stock shares) x \$2.08476 (value of stock on May 11, 2022) + \$4,500,000.00 (cash consideration) - \$120,000.00 (closing cash) - \$1,006,384.26 (Truist Promissory LOC) - \$1,531,747.95 (Third Party expenses) = \$31,841,866.50 (total value of sale after closing and third party deductions) ÷ 2 = \$15,920,933.20 - \$2,000,000.00 (amount paid to Plaintiffs) = \$13,920,933.20 (total owed to both Plaintiffs) ÷ 2 = \$6,960,466.60 (total owed to each Plaintiff)

\$15,920,933.20 = Riesen's share

(50% value of sale)

\$15,920,933.20 = Plaintiffs' total share
(representing 50% value of sale)
prior to \$2 million deduction

\$13,920,933.20 = Amount owed to both Plaintiffs
with \$2 million deduction

\$6,960,466.60 = Amount owed to Plaintiff White

2. Count II Breach of Agreements

Calculation: Damages are calculated based on the benefit of the bargain that Plaintiff was denied. This includes the value Plaintiff would have received had he been permitted to exercise this stock option at the actual sale price of the company as of May 11, 2022.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the assumption that interest rates are to be included in the calculation and Plaintiff reserves the right to add this calculation.

Amount: (based on a calculation of total value of shares of stock on the date of the merger on May 11, 2022)

Total owed: \$6,960,466.60 to Plaintiff White

Calculation: $14,390,145$ (Total stock shares) $\times$ $\$2.08476$ (value of stock on May 11, 2022) $+ \$4,500,000.00$ (cash consideration) $- \$120,000.00$ (closing cash) $- \$1,006,384.26$ (Truist Promissory LOC) $- \$1,531,747.95$ (Third Party expenses) $= \$31,841,866.50$ (total value of sale after closing and third party deductions) $\div 2 = \$15,920,933.20$ $- \$2,000,000.00$ (amount paid to Plaintiffs) $= \$13,920,933.20$ (total owed to both Plaintiffs) $\div 2 = \$6,960,466.60$ (total owed to each Plaintiff)

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(representing 50% value of sale)
prior to \$2 million deduction

$\$13,920,933.20 =$ Amount owed to both Plaintiffs
with \$2 million deduction

$\$6,960,466.60 =$ Amount owed to Plaintiff White

Alternate Theory of Recovery:

Defendant represented (or misrepresented) to Plaintiffs that the sale of MSI was \$12 million, and they were owed an additional \$4 million after the payment of \$2 million.

Alternate Calculation: $\$12$ million $\div 2$ (to represent Riesen receives 50% and Plaintiffs receive 50%) $- \$2$ million (payment) $\div 2$ (for each Plaintiff) $= \$2$ million

Alternate Calculation: \$2 million for Plaintiff White (Plaintiff White is only providing this alternate calculation based on Defendant's misrepresentation of the sale price to Plaintiff but Plaintiff relies upon the previous calculation as set above regarding the true sale price)

of MSI).

3. Count III – Fraudulent Misrepresentation

Calculation: is based on the time of the fraudulent misrepresentation and the amount that Plaintiff lost by being deceived by Defendant. Generally, damages would be calculated based on the actual sales price versus the misrepresented price (here \$35 million minus \$12 million). However, Plaintiffs were not fully paid the \$6 million owed under the misrepresented price, therefore, the calculation as set forth above will be used. Damages include losses, benefit-of-bargain damages, but pre-and post-judgment interest, along with punitive damages (subject to the caps set forth in Tex. Civ. Prac. & Rem. Code § 41.008(b) have not been included in the calculations, but Plaintiff reserves the right to add these calculations.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the assumption that interest rates are to be included in the calculation and Plaintiff reserves the right to include this calculation.

Total owed: \$6,960,466.60 to Plaintiff White

Calculation: 14,390,145 (Total stock shares) x \$2.08476 (value of stock on May 11, 2022) + \$4,500,000.00 (cash consideration) - \$120,000.00 (closing cash) - \$1,006,384.26 (Truist Promissory LOC) - \$1,531,747.95 (Third Party expenses) = \$31,841,866.50 (total value of sale after closing and third party deductions) ÷ 2 = \$15,920,933.20 - \$2,000,000.00 (amount paid to Plaintiffs) = \$13,920,933.20 (total owed to both Plaintiffs) ÷ 2 = \$6,960,466.60 (total owed to each Plaintiff)

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(50% value of sale)

\$15,920,933.20 = Plaintiffs' total share
(representing 50% value of sale)

prior to \$2 million deduction
 $\$13,920,933.20 =$ Amount owed to both Plaintiffs
with \$2 million deduction
 $\$6,960,466.60 =$ Amount owed to Plaintiff White

4. Count IV – Unjust Enrichment

Calculation: Plaintiff conferred benefits upon Defendant through his contributions to MSI's formation and operations; Defendant has been unjustly enriched by retaining the majority of proceeds from MSI's merger while denying Plaintiff's rightful share. Damages are calculated based on the value of the benefit Defendant received by keeping the majority of the sale proceeds that rightfully belonged to both Plaintiffs. Therefore, the specific amount of unjust enrichment corresponds to the portion of MSI's sale proceeds that Defendant improperly retained. Damages include: disgorgement of unjustly retained proceeds from merger of MSI and restitution.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the assumption that interest rates are to be included in the calculation and Plaintiff reserves the right to include these calculations.

Amount: (based on a calculation of total value of shares of stock on the date of the merger on May 11, 2022)

Total owed: \$6,960,466.60 to Plaintiff White

Calculation: $14,390,145$ (Total stock shares) $\times$ $\$2.08476$ (value of stock on May 11, 2022) $+$ $\$4,500,000.00$ (cash consideration) $-$ $\$120,000.00$ (closing cash) $-$ $\$1,006,384.26$ (Truist Promissory LOC) $-$ $\$1,531,747.95$ (Third Party expenses) $=$ $\$31,841,866.50$ (total value of sale after closing and third party deductions) $\div 2 =$ $\$15,920,933.20$ $-$ $\$2,000,000.00$ (amount paid to Plaintiffs) $=$ $\$13,920,933.20$ (total owed to both Plaintiffs) $\div 2 =$ $\$6,960,466.60$ (total owed to each Plaintiff)

\$15,920,933.20 = Riesen's share
(50% value of sale)
\$15,920,933.20 = Plaintiffs' total share
(representing 50% value of sale)
prior to \$2 million deduction
\$13,920,933.20 = Amount owed to both Plaintiffs
with \$2 million deduction
\$6,960,466.60 = Amount owed to Plaintiff White

16. Identify all Documents that you used, referred to, or relied upon to respond to this First Set of Interrogatories.

ANSWER:

Please refer to Plaintiff's document production.

SUPPLEMENT:

- An offer of employment from MSI dated October 15, 2013
- An offer of employment for GRAP dated April 11, 2015
- A stock option agreement dated November 12, 2013
- A stock option agreement dated November 21, 2016
- Bonus Agreement
- GRAP chart
- Merger Consideration produced to Attorneys
- MSI Business Card
- Attorney Morris' letters
- Various correspondence with Defendant as produced in Discovery

VERIFICATION

Pursuant to 28 U.S.C. § 1746, I hereby declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge, information, and belief, as execute on this 19 day of December 2025.

Executed on this 19 day of December, 2025.


Richard White (Dec 19, 2025 19:15:18 GMT)
Richard White

ROG - White's Updated Supp Answers to Defendant's

Final Audit Report

2025-12-19

Created:	2025-12-19
By:	Dale Sisco (dsisco@sisco-law.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAASRyjLYW9vJfKWWiH1RsSGFTny4woYpKT

"ROG - White's Updated Supp Answers to Defendant's" History



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Document e-signed by Richard White (richard@internationaladvisoryservices.com)

Signature Date: 2025-12-19 - 7:15:18 PM GMT - Time Source: server- IP address: 88.202.250.204



Agreement completed.

2025-12-19 - 7:15:18 PM GMT



**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

ALEXIS EVERINGTON
and RICHARD WHITE

Plaintiffs,
v.

TIMOTHY J. RIESEN

Defendant.

Case No. 8:23-cv-02386-JLB-NHA

**PLAINTIFF ALEXIS EVERINGTON'S SUPPLEMENTAL ANSWERS TO
DEFENDANT'S FIRST SET OF INTERROGATORIES**

Plaintiff, Alexis Everington, by and through his undersigned counsel, hereby serves his Supplemental Answers to Defendant's First of Interrogatories and in support thereof states as follows:

INTERROGATORIES

Plaintiff submits that discovery is ongoing and expressly reserves the right to amend and/or supplement the answers to each interrogatory.

1. Identify all Persons who have provided information or otherwise assisted you in answering these Interrogatories. For each Person that you Identify, provide the specific Interrogatory such Person provided information for and the substantive information provided with respect to each specific Interrogatory.

ANSWER: Please see each interrogatory for the substantive answer.

The following people aided in providing answers to each interrogatory:

Alexis Everington
Richard White

Dale Sisco and Cynthia Sonnemann
Sisco-Law
Counsel for Plaintiffs
777 S. Harbour Island Blvd.
Tampa, FL 33602

2. Identify all Persons whom you believe may have possession, custody, or control of any Documents (whether or not any such Documents are claimed to be privileged) upon which an allegation, claim, or defense in the Action is based. For each Person that you Identify, provide a description of each Document that is in such Person's possession, custody, or control.

SUPPLEMENTAL ANSWER:

With respect to each identified person below, discovery is ongoing, and Plaintiff expressly reserves the right to amend or supplement this response.

Alexis Everington:

2013 stock holder agreement giving a 10% stock option; the 2016 stockholder agreement giving an option to purchase 25% of the outstanding and issued common stock, being 250 shares of the common stock of MSI, fully paid and non-assessable at a price of \$1.00 per share; various communications over Wire regarding: MSI projects, being partners with Riesen, potential buyers for MSI, the merger and requesting to see merger documents post-merger; document pre-merger regarding MSI and Premise regarding the acquisition of MSI indicating that acquisition should be kept confidential and only known to a few employees (given to Plaintiffs by Riesen); Chart tracking potential buyers of MSI dated April 13, 2021 (given to Plaintiffs by Riesen) ; Chart tracking potential buyers of MSI dated April 27, 2021 (given to Plaintiffs by Riesen); the McLean Group document for MSI discussing representation of MSI given to Plaintiffs by Riesen (given to Plaintiffs by

Riesen).

Richard White:

2013 stock holder agreement giving a 10% stock option; the stockholder agreement giving an option to purchase 25% of the outstanding and issued common stock, being 250 shares of the common stock of MSI, fully paid and non-assessable at a price of \$1.00 per share.

Timothy Riesen: the sale document(s) behind the sale of MSI to Premise (and/or any intermediary persons and or entities; two stock holder agreements dated 2013 and 2016 for each Plaintiff; documents involving securities fraud case against Premise and related settlement agreement.

Timothy Riesen's lawyer(s) used for the sale of MSI to Premise (and/or any intermediary persons and/or entities.

Timothy Riesen's accountants used for the sale of MSI to Premise (and/or any intermediary companies).

Chertoff: the M&A specialist broker used for the sale of MSI to Premise (and/or any intermediary persons and/or entities); documents relating to the merger and possibly the due diligence pertaining to the merger).

Maury Blackman: He may have communications with Riesen regarding the merger and post-merger matters and/or documents relating to the merger.

3. Identify and Describe in full detail all Communications, whether written or oral, between you and any Person relating to your Complaint and any allegations, claims and defenses in this Action.

ANSWER:

Objection. This interrogatory, as phrased, is vague and overly broad as it seeks communications between the Plaintiff and "any person." Moreover, the interrogatory as phrased seeks information containing the attorney client and/or attorney work product privilege.

SUPPLEMENT:

Without waiving any objection, Plaintiff answers that he spoke with his attorneys regarding the Amended Complaint which is protected by the attorney-client privilege. Plaintiff also in his deposition answered questions and testified in response to opposing counsel's questions regarding this matter. Plaintiff otherwise answers none.

4. Identify and Describe in full detail all contracts, agreements, arrangements, and relationships that you have had or currently have with MSI.

ANSWER:

Please refer to the Complaint filed in this action setting forth the contracts, agreements, arrangements and relationships that Plaintiffs have had with Defendant and MSI. Please also refer to the answers in interrogatory number 2.

Additionally, Plaintiff submits that discovery is ongoing and expressly reserves the right to supplement this interrogatory.

Plaintiff also answers that Plaintiffs and Defendant worked together as partners in the business of developing, working and ensuring that MSI would flourish into a successful business that would cultivate and capture various profitable projects around the world. Plaintiffs successfully worked on over eighty projects spanning approximately forty countries and valued at least at forty-two million dollars. The goal between the partners was to sell MSI at a profitable margin. Also, notably and specific to the sale of MSI:

1. Plaintiffs and Defendant had very regular communications about potential buyers, valuations, and strategies towards a sale that would not have occurred between individuals that did not have a partnership,
2. Defendant shared documents about potential buyers, valuations and strategies that would not have been shared with individuals that did not have a partnership,
3. Defendant painted a picture of Plaintiffs' essential involvement towards a sale (and subsequent remuneration after the sale) of MSI; he also shared documents with Plaintiffs that were expressly categorized as to be shared only with limited employees, for example, the PowerPoint document regarding Premise and MSI

regarding the acquisition.

SUPPLEMENT:

Plaintiff answers that all agreements and contracts have already been produced in discovery. These agreements and contracts include:

- An oral partnership agreement with Tim Riesen to form MSI. The agreement between Plaintiffs and Defendant was to form MSI and later sell the company for profit with Plaintiffs being entitled to 50 percent of the profit, equaling a total of 25 percent. Plaintiff had regular communications with Mr. White and Defendant regarding the direction of MSI and obtaining government contracts, trained personnel and discussions pertaining to the sale of MSI.
- An offer of employment from MSI dated October 15, 2013
 - o Plaintiff considered himself as an employee and partner since the beginning of MSI. Plaintiff also answers that he has a limited understanding of the United States legal definition of “employee.” Plaintiff had utter trust in Defendant that Defendant would honor his part of the partnership agreement and felt no need to question Riesen as it was, in his mind, a relationship built utterly on trust (including personally taking Riesen to non-permissive countries and chaperoning him there). In addition, Riesen did things like share the PowerPoint of Premise and MSI with Plaintiffs that said it was only for select employees and treated us like “special employees” including being part of the MSI Christmas party (to my knowledge no subcontractors were invited to).
- An offer of employment for GRAP dated April 11, 2015
 - o At the time of this letter, Plaintiff considered moving to the United States if MSI won this government contract. At all times Plaintiff considered himself to be an employee and partner of MSI regardless of the outcome of the GRAP contract.
- A stock option agreement dated November 12, 2013
 - o This agreement was the first formalization on paper of the agreement with Defendant that Plaintiffs and Defendant were partners. This agreement established Mr. Everington was a 10 percent owner

of MSI.

- A stock option agreement dated November 21, 2016
 - o This agreement formalized the agreement with Defendant that Mr. Everington was a 25% percent owner in the company. Mr. Everington trusted Defendant would honor their oral partnership agreement and that he would be given 25 percent of the profit upon the sale of MSI.
- The Mare Nova agreement which established Mare Nova in Monaco. It was a new business venture regarding the obtainment of real estate, but the company never did any business.
- Defendant as a partner with Plaintiffs at the time prior to the merger provided highly sensitive and confidential information pertaining to the merger including the charts of potential buyers and the confidential power point regarding MSI and the Premise; had very regular communications about the strategy and direction of MSI, these communications also concerned and involved the training of senior MSI members; Mr. Everington also attended MSI Christmas parties.
- Plaintiff currently has no other agreements with MSI

5. Identify and Describe in full detail all business relationships you have had or currently have with IAS. For each business relationship that you Identify and Describe, include the following information in your response (a) a description of the character of the business relationship(s) (*e.g.*, whether you were an officer, director, employee, agent, representative, founder, owner, member, shareholder, consultant, vendor, service provider, etc.); (b) the dates upon which such business relationship(s) commenced and ended; (c) a description of the services, duties, and tasks you performed for, on behalf of, or provided to IAS; and (d) the compensation you received from IAS or as a result of the business relationship(s).

ANSWER:

Objection, this interrogatory as phrased seeks information that is irrelevant to this case. In particular, any compensation received by Plaintiff from IAS that is separate from IAS's dealings with MSI has no bearing to this case.

Without waiving said objections, Plaintiff answers that he established IAS with the intention that he and Mr. Riesen would work as partners. However, Mr. Riesen established MSI in order to obtain contracts with the United States government and represented to Plaintiffs that this was the only way in which such government contracts could be obtained. In 2016, Plaintiff's sister, Christina Everington became the owner of the business. Plaintiff is the Director of IAS. Plaintiff has conducted and provided analysis of various research projects that contain highly sensitive and confidential intelligence information. Projects were conducted in tandem and for MSI. Many projects were for the United States military as well as other customers. Plaintiffs' unique abilities to conduct and acquire sensitive information helped make MSI attractive to prospective clients, resulting in the company becoming more profitable. Based on MSI's payment terms, IAS often operated at extreme financial risk.

Working as partners with Defendant, Plaintiff also:

- Worked on many proposals and presentations for MSI;
- Introduced Defendant to several individuals in the sector with the view of gaining their confidence and business;
- Received information from Defendant regarding sensitive client answers on business opportunities and projects;
- Collaborated with Defendant and presented themselves as partners to potential and existing clients;
- Provided insight into the competitors when feasible; and
- Utilized his networks to help Defendant gain a competitive advantage in this field of, and trained other senior MSI members and oversaw their occasional involvement in projects.

SUPPLEMENT:

Without waiving any objections, Plaintiff answers as follows: Plaintiff objects to this interrogatory and restates his objection that this interrogatory as posed has no bearing on this case. Defendant has not

asserted any counterclaims against IAS, therefore, any compensation received is not relevant to this case. Furthermore, Defendant also testified that he did not have an ownership interest in IAS underscoring its irrelevancy. *See* Riesen Deposition, p. 12, ln: 20-21. Mr. Everington further answers that IAS was initially formed around 2010 or 2011 in Fujairah in the United Arab Emirates to be the partnership company with Defendant. However, Defendant told Mr. Everington that the only way to obtain United States government contracts, a company could not have foreign ownership. Therefore, IAS became part of the institutional layering for the partnership agreement with Defendant in which IAS was a mechanism an entity to carry out the work for MSI. IAS as part of the institutional layering was the identity through which Mr. Everington was compensated for the value of work performed for government contracts for MSI. IAS white-labeled information for on the ground-researchers in order to protect the identity of MSI and protect the safety of the on the ground researchers in various hostile countries who would have been incarcerated or killed if found to be conducting research for a United States company.

IAS is currently registered in Dubai. IAS has no employees or offices. IAS is currently operational in a diminished capacity.

By way of further answer, Mr. Everington has testified that 90 percent of the value of work for IAS was for MSI with the other ten percent of work being for projects for the FCO and MOD in order to keep the research networks going in which Defendant was fully aware and in agreement with this work. Mr. Everington has testified and does not dispute that IAS received around 42 million dollars in revenue for MSI projects completed through the partnership of the parties. However, Mr. Everington and Mr. White always paid researchers up front prior to being paid by MSI and operated at an extreme financial risk with the possibility of not being paid, or at times working at a money deficit. Money that was left over after a project (if any depending on whether the projected costs were more than originally anticipated to complete the project), Mr. Everington and Mr. White would split the money (Mr. White was a consultant for IAS).

Mr. Everington utilized his networks to help Defendant gain a competitive advantage in this field of work. He trained other senior MSI members and oversaw their occasional involvement in projects.

Mr. Everington also received one million dollars per the Bonus

Agreement through IAS that was the first payment for the total amount Defendant promised to pay him from the merger of MSI due to the terms of the stock option agreement and partnership agreement.

6. Describe in full detail all facts relating to the “Bonus Agreement” (referenced in ¶¶ 41 and 43 of your Complaint) and any payment(s) you received thereunder including, with respect to such payment(s), the amount of the payment(s) you received, from whom you received such payment(s), the manner in which you received such payment(s), and the date(s) on which you received such payment(s).

ANSWER:

Plaintiff submits that discovery is ongoing and he expressly reserves the right to supplement this interrogatory.

On June 23, 2022, Cortland Capital Market Services wired IAS two million dollars in relation to a Bonus Agreement. IAS then paid Plaintiff one million dollars. The circumstances surrounding the transaction are set forth in a supplemental letter dated September 13, 2022, from Mr. Roy R. Morris.

SUPPLEMENT:

Mr. Everington further responds that he signed the Bonus Agreement on behalf of IAS on May 10, 2022, which he has now learned was one day before the merger of MSI. Mr. Everington trusted Defendant’s representations that the one million dollars he received was partial payment of the three million dollars Defendant was to pay Mr. Everington based on Defendant’s representations of the value of the deal for MSI’s merger. Mr. Everington has recently learned that the merger agreement’s value at the time of its signing were not the full terms represented to him by Defendant.

7. Identify and Describe in full detail all Communications, whether written or oral, between you and any Person relating to the “Bonus Agreement” (referenced

in ¶¶ 41 and 43 of your Complaint) and any payment(s) you received thereunder.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Mr. Riesen represented to Plaintiffs that they were each due an additional two million dollars based on the sale of MSI. The additional four million dollars owed to Plaintiffs is referenced in a supplemental letter dated September 13, 2022, from Mr. Roy R. Morris. Based on Mr. Riesen previously not being forthright regarding the sale price of MSI and based on other information, Plaintiffs at a minimum are owed four million dollars, and possibly a greater amount.

SUPPLEMENT:

By way of further answer, Plaintiff objects on the ground that “any” person is overly broad and fails to set limits to particular persons that are relevant to the claims in this case. Without waiving any objections, Plaintiff further answers that Defendant did not provide the full the terms of the merger agreement when he promised to pay Plaintiffs six million in cash. Plaintiff has also spoken to his counsel regarding the Bonus Agreement and these communications are protected by the attorney-client privilege. Plaintiff also answered questions by opposing counsel during his deposition regarding the Bonus Agreement. As explained in his previous answer, Mr. Everington had conversations with Mr. Riesen regarding the payment he was to receive under the Bonus Agreement. Mr. Riesen told Mr. Everington that the payment of 1 million dollars under the Bonus Agreement was only partial payment from Defendant of the three million dollars Defendant promised to pay Mr. Everington, which would equate to his 25% stock option. Defendant represented to Mr. Everington that the valuation of the MSI was 12 million dollars, therefore Mr. Everington was due \$3 million. Mr. Everington also spoke with Mr. White regarding the Bonus Agreement and the understanding by Plaintiffs that it was partial payment of the money Defendant promised to pay them. Plaintiff likely spoke to his wife in conversation about the Bonus Agreement but those communications are protected by the spousal privilege and there is no documentation of those conversations. Plaintiff otherwise answers none.

8. Describe in full detail all of the “substantial benefits” and the “work and services” that you “provided over many years to help [Defendant] build up Madison Springfield into a successful company” as you contend in ¶ 68 of the Complaint. For each of the benefits, work and services that you Describe in your response to this Interrogatory, include (a) the capacity or capacities in which you provided all of the benefits, work, and services to Defendant; (b) the Identity of the Person(s) through which you provided all of the benefits, work and services to Defendant; (c) the dates upon which you provided all of the benefits, work and services to Defendant; and (d) the compensation you received (regardless of the source of such compensation) for all of the benefits, work and services you provided to Defendant.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiff from the inception of MSI worked to improve and advertise the MSI brand. Plaintiff along with Mr. Riesen and Mr. White worked as partners to continually develop MSI into a successful business with the goal of selling MSI for a profitable margin. Plaintiff repeatedly performed in-depth research and analysis of projects throughout the world that were of a sensitive nature for MSI. Plaintiff's dedication to providing the utmost detailed and insightful research and analysis helped build MSI's reputation into being a company that provided invaluable information to MSI's clients. Plaintiff therefore worked on innovative and groundbreaking projects that gained attraction from clients and other key players in the sector. These projects included highly sensitive information in various parts of the world, including unsettled countries. On numerous occasions, Plaintiff worked to build the MSI brand without remuneration with the goal of MSI being sold at a profitable margin. He therefore used personal contacts and his network for MSI to fulfill contracts that Mr. Riesen would not have been able to

accomplish on his own. Mr. Riesen continually through conversations including texts and emails stated how invaluable Plaintiff's work contributions were to the various projects and success of MSI. Mr. Riesen also reaffirmed on various occasions that Plaintiffs were partners in MSI.

Mr. Riesen also provided Plaintiff with an MSI business card, email address, VPN, wire account and Protonmail account. Mr. Riesen would refer to Plaintiff as a Director of Research for MSI when I was introduced to clients. Mr. Riesen also had Plaintiff directly present to various clients, regarding the work performed or asked for Plaintiff's assistance on projects abroad. Plaintiff gave his input at Mr. Riesen's request for various proposals. Plaintiff at Mr. Riesen's request, personally trained new and senior members of MSI. IAS was paid approximately over forty million dollars for the work performed for MSI. Plaintiff believes that in terms of value, Plaintiffs' work probably accounted for over 90% of MSI's work.

Mr. Riesen also had Plaintiff write analysis and reports for publications to help generate awareness of MSI in the field, including with the United States military and other related institutions. Mr. Riesen also confided in Plaintiff with sensitive and important topics for MSI, including the PowerPoint of MSI and Premise that was marked as only for select MSI employees.

Further, Mr. Riesen informed Plaintiff that Plaintiff's company Mare Nova was important in the valuation and sale of MSI.

Plaintiff also worked on the following for MSI:

PROJECT	COUNTRY	YEAR
ADEN	Yemen	2016
ALLENBY	Yemen	2014
BRADLEY	Syria	2013-2014
CLAUSEWITZ	Jordan	2013-2014
DOOLITTLE	Yemen	2014
EISENHOWER	Somaliland	2014
ELBOW	Iran	2012-2013
ELBOW II	Iran	2013

ELBOW III	Iran	2013
FOCH	Syria	2014
HUDAYDA	Yemen	2015
ITO (TAA)	Ukraine	2014
ITO (FG)	Ukraine	2014
JAFARA	Libya	2015
JOMINI	Mexico / Bahamas	2014
KHATTABI (2 Waves)	Afghanistan	2014
KHATTABI II (3 Waves)	Afghanistan	2015-2016
KHATTABI II	Afghanistan	2015
KSA	KSA	2016
LEDGER	Algeria	2016
MACARTHUR	Syria / Iraq	2015
NAPOLEON	Lebanon	2015-2016
ODINERO	RENAMED WELLINGTON	
PARK (Phase I) (Phase II)	Jordan	2016-2017
QUINAN	Iraq/Syria	2016
RIDGWAY	Yemen	2016
SIKORSKI	Afghanistan	2016
TITO	Yemen	2017
TITO II	Yemen	2017-2018
ULYSSES	Pakistan	2016
WELLINGTON I	Iraq/Syria	2015-2016
WELLINGTON II	Syria	2017
WELLINGTON III	Syria	2017
WELLINGTON IV	Syria	2017-2018
YAMAMOTO	Lebanon	2017
YELLOWTAIL	Syria	2015
ZHUKOV	Iran	2017
AEROSMITH	DPRK	2017-2018
BEATLES	MALI	2018-2019
DOORS	EUROPE WIDE 11 COUNTRIES	2018
ELVIS	GREECE	2018-2019
FOREIGNER	DPRK	2018-2019

GENESIS	IRAN	2018-2019
INXS	PHILIPPINES	2019-2020
METALLICA	IRAN PORTS	2019
NIRVANA	Iran	2018-2019
OZZY	Iran	2018-2019
PRINCE	Iran	2018-2019
QUEEN	Iran	2018-2019
AUDUBON		
BANKSY		
STING	Iran	2018-2019
STING 2	Iran	2019
TESLA	Syria	2018-2019
U2	Syria	2018-2019
WHITESNAKE	Syria	2019
XTC	Yemen	2019
YARDBIRDS	Iran	2019
AHAB	Iran	2019
BEOWULF	Iran (10 Cities)	2109
CAUFIELD	Iran	2019
FINN	Iran WIFI	
GATSBY	Iran Purchases	
HAVISHAM	Africa Photo Project	
LORNA	Iran Area Survey	
MACBETH		
NEMO	30 Country Vital National Security Interests	
OHARA	China Business/Real Estate Survey	
POTTER	Meta - Moldova	
QUIXOTE	Iran Market Research	
ROBINSON	Iran Market Research	
SAWYER	SDP Forum Analysis	
TITO		
URIAH		
VITO		
WONKA		

X		
YEOBRIGHT		
ZORRO		

Please also refer to Plaintiff's Production of Documents.

SUPPLEMENT:

By way of further answer, Plaintiff stands by his previous answer, setting forth in detail the work performed for MSI. All work performed was done through the partnership agreement to help Defendant along with Mr. White to build MSI into a successful company. Plaintiff further answers that he constantly worked over weekends and holidays to have the best possible product for MSI so MSI would grow as a company, which also benefited Defendant. Plaintiffs completed a majority of work for MSI contracts as partners with Defendant. Defendant confided in Plaintiffs information pertaining to MSI as a partner including highly sensitive and confidential information pertaining to the merger of MSI with Premise.

In furtherance of the partnership, Plaintiff also trained Michele Foster Pestchel, Ingrid De La Fuente and Ira Shurig after they were hired to work for MSI so they would understand the type of research work MSI was performing. Also, in furtherance of the partnership with Defendant, Plaintiff had his own network and contacts for research purposes in various foreign countries in order for MSI to complete various contracts. Plaintiff was involved in all stages of contracts including bidding, providing key input to the successful obtainment of bids (which included developing presentations) and completing contracts successfully for MSI. Plaintiff was also traveled to the United States to meet with key personnel, including Paul Warren.

9. Identify and Describe in full detail all facts upon which you rely to support your contention that there was an "oral contract" between you and Defendant as you allege in "Count One" of the Complaint, including in your response (a) the terms, provisions, and conditions of the alleged oral contract; (b) the parties to the

alleged oral contract; (c) the substance of all Communications pertaining to the alleged oral contract (including the date, time and location of each Communication); and (d) all actions you took as a result of or in furtherance of such alleged oral contract.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiffs from the inception of MSI worked as partners with Mr. Riesen to continually develop MSI into a successful business. Mr. Riesen represented to Plaintiffs that for them to obtain contracts with the United States government, he would have to form a company in the United States. In other words, IAS would not be able to win defense/security contract bids from the United States government due to being a foreign company. Therefore, all three men worked as partners to continue to perform the work they were already performing, but under the MSI brand. The agreement was that each would derive a benefit from a later sale of MSI. Because all three worked together to promote and build the MSI brand, each Plaintiff eventually had a 25% stock interest in MSI. To develop MSI into a successful enterprise, Plaintiffs continually performed in-depth research and analysis of projects throughout the world that were of a sensitive nature for MSI. Plaintiff's dedication to providing the utmost detailed and insightful research and analysis helped build MSI's reputation into being a company that provided invaluable information to MSI's clients. Mr. Riesen continually through conversations including texts and emails stated how invaluable Plaintiff's work contributions were to the various projects and success of MSI. Mr. Riesen also reaffirmed on various occasions that Plaintiffs were partners in MSI.

Please also see Plaintiffs' document production.

10. Identify and Describe in full detail in non-conclusory language all facts, Communications, and Documents upon which you rely in support of your assertion that a fiduciary relationship existed between you and Defendant, including in your response all facts and circumstances supporting the creation of the alleged fiduciary

relationship.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiffs worked as partners with Mr. Riesen to develop MSI into a successful business. Mr. Riesen, as a partner, owed a fiduciary duty to the Plaintiffs to be forthcoming pertaining to the terms of the sale of MSI. Mr. Riesen, although promising to do so, never fully disclosed the terms of the sale to Plaintiffs; thereby thwarting Plaintiffs' ability to ascertain the amount they were rightfully owed for the sale. To date, Mr. Riesen has not fully paid Plaintiffs the amounts owed to them. Please also see Plaintiffs' document production.

11. Identify and Describe in full detail all facts upon which you rely to support your contention that "Riesen and/or his family trusts have been unjustly enriched" as you allege in ¶ 65 of the Complaint.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Per Mr. Roy R. Morris' letter supplemented on September 13, 2022, Mr. Riesen placed MSI shares of stock into a family trust. However, Plaintiffs have still not been paid money owed to them.

12. Describe in full detail the basis upon which you contend in ¶ 34 of your Complaint that "Riesen made a decision not to distribute excess cash received on a project to IAS to make Madison Springfield look more valuable to prospective purchasers."

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

Plaintiffs worked on Project Beowulf in Iran that was priced at 2 million dollars. Defendant told Plaintiffs that he was paid 3.5 million dollars for the project and the surplus would be invested in another company to start a business between Plaintiffs and Defendant. Defendant sent only 260,000 dollars for the investment. Defendant made the unilateral decision to keep the remainder within MSI to raise its profits to two million dollars to make the company appear more attractive for prospective buyers.

13. Identify all audio or video recordings you have of Defendant in your possession, custody, or control. For each audio or video recording you Identify, include the following information in your response (a) the Identity of each Person(s) who can be heard in or seen on the recording; (b) Describe the manner in which you obtained each recording; and, if applicable, (c) Identify each Person to whom you have disseminated, disclosed or otherwise shared a recording. For each Person that you Identify in (c), please provide the date on which you disseminated, disclosed or otherwise shared a recording and the purpose of such dissemination or disclosure.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory.

SUPPLEMENT: None.

14. Identify all consultants and expert witnesses that you intend to use in a hearing or at the trial of this Action. For each consultant or expert that you Identify (a) provide the name, address, and telephone number of the consultant or expert; (b) state the subject matter upon which the consultant or expert is expected to testify; (c)

state the substance of the facts and opinions to which the consultant or expert is expected to testify; and, (d) provide a summary of the grounds for each opinion provided by the consultant or expert.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory. To date, the answer is no experts/consultants have been identified.

15. For *each* category of damages that you claim you are entitled to recover from Defendant in the Action (a) state the amount of damages you claim you are entitled to recover; (b) Identify and Describe in full detail the factual basis upon which you rely to support your claim for such damages; and (c) specify and describe the precise method that you used to calculate or arrive at the amount of damages you claim you are entitled to recover in this Action.

ANSWER:

Plaintiff submits that discovery is ongoing, and he expressly reserves the right to supplement this interrogatory. Plaintiff also objects to this interrogatory because it is currently premature. Plaintiff has already answered that Mr. Riesen has failed at a minimum to pay two million dollars to each Plaintiff. Further, without having pertinent information that likely will be forthcoming during future discovery, Plaintiff is unable to answer this interrogatory due to Mr. Riesen previously not being forthcoming regarding MSI's sales terms.

SUPPLEMENT:

To date, Mr. Everington has not been able to confirm the consideration received by Defendant due to Defendant's objections to requests for production of documents and not answering questions either in his deposition in his personal capacity or as the corporate representative of MSI. Therefore, Mr.

Everington's calculations are based on information that was produced to his attorneys in discovery. Plaintiff will update, if necessary, his damage calculations upon receipt and analysis of additional discovery from Defendant in the event that discovery of additional accounting information reveals that the current calculations are inaccurate due to a change of the valuation of the merger's terms on the date of the merger.

Plaintiffs will also seek pre-judgment and post-judgment interest as permitted by law, including attorneys' fees and costs if permitted by statute, contract or equitable principles. All calculations are based on estimates with current available information at the time of service of this discovery.

1. Count I Breach of Fiduciary Duty:

Calculation: Plaintiff's damages consist of the value of the stock options he was prevented from exercising based on the 2016 Stock option entitling him to a 25% option. Based on the actual sale price of MSI (as opposed to the misrepresented lower price initially disclosed or the claimed value by Defendant), Plaintiff calculates his damages as the difference between what he would have received upon exercise of his stock options at the true sale price versus what he actually received. Damages include losses, but not calculation of pre- and post-judgment interest or punitive damages (subject to the caps set forth in Tex. Civ. Prac. & Rem. Code § 41.008(b), but Plaintiff reserves the right to the addition of these calculations.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the assumption that interest rates are to be included in the calculation, and Plaintiff reserves the right to the addition of these calculations.

Amount: (based on a calculation of total value of shares of stock on the date of the merger on May 11, 2022)

Total owed: \$6,960,466.60 to Plaintiff Everington

Calculation: 14,390,145 (Total stock shares) x \$2.08476 (value of stock on May 11, 2022) + \$4,500,000.00 (cash consideration) - \$120,000.00 (closing cash) -

$\$1,006,384.26$ (Truist Promissory LOC) -
 $\$1,531,747.95$ (Third Party expenses) =
 $\$31,841,866.50$ (total value of sale after closing and
 third party deductions) $\div 2 = \$15,920,933.20$ -
 $\$2,000,000.00$ (amount paid to Plaintiffs) =
 $\$13,920,933.20$ (total owed to both Plaintiffs) $\div 2 =$
 $\$6,960,466.60$ (total owed to each Plaintiff)

$\$15,920,933.20 =$ Riesen's share
 (50% value of sale)
 $\$15,920,933.20 =$ Plaintiffs' total share
 (representing 50% value of sale)
 prior to \$2 million deduction
 $\$13,920,933.20 =$ Amount owed to both Plaintiffs
 with \$2 million deduction
 $\$6,960,466.60 =$ Amount owed to Plaintiff
 Everington

2. Count II Breach of Agreements

Calculation: Damages are calculated based on the benefit of the bargain that Plaintiff was denied. This includes the value Plaintiff would have received had he been permitted to exercise this stock option at the actual sale price of the company as of May 11, 2022.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the assumption that interest rates are to be included in the calculation and Plaintiff reserves the right to add this calculation.

Amount: (based on a calculation of total value of shares of stock on the date of the merger on May 11, 2022)

Total owed: $\$6,960,466.60$ to Plaintiff Everington

Calculation: $14,390,145$ (Total stock shares) $\times \$2.08476$ (value of
 stock on May 11, 2022) $+ \$4,500,000.00$ (cash
 consideration) - $\$120,000.00$ (closing cash) -
 $\$1,006,384.26$ (Truist Promissory LOC) -

\$1,531,747.95 (Third Party expenses) =
 \$31,841,866.50 (total value of sale after closing and
 third party deductions) ÷ 2 = \$15,920,933.20 -
 \$2,000,000.00 (amount paid to Plaintiffs) =
 \$13,920,933.20 (total owed to both Plaintiffs) ÷ 2 =
 \$6,960,466.60 (total owed to each Plaintiff)

\$15,920,933.20 = Riesen's share

(50% value of sale)

\$15,920,933.20 = Plaintiffs' total share
 (representing 50% value of sale)
 prior to \$2 million deduction

\$13,920,933.20 = Amount owed to both Plaintiffs
 with \$2 million deduction

\$6,960,466.60 = Amount owed to Plaintiff
 Everington

Alternate Theory of Recovery:

Defendant represented (or misrepresented) to
 Plaintiffs that the sale of MSI was \$12 million, and
 they were owed an additional \$4 million after the
 payment of \$2 million.

Alternate Calculation: \$12 million ÷ 2 (to represent Riesen
 receives 50% and Plaintiffs receive 50%) - \$2 million
 (payment) ÷ 2 (for each Plaintiff) = \$2 million

Alternate Calculation: \$2 million for Plaintiff Everington (Plaintiff
 Everington is only providing this alternate
 calculation based on Defendant's misrepresentation
 of the sale price to Plaintiff but Plaintiff relies upon
 the previous calculation as set above regarding the
 true sale price of MSI).

3. Count III – Fraudulent Misrepresentation

Calculation: is based on the time of the fraudulent misrepresentation
 and the amount that Plaintiff lost by being deceived by Defendant.
 Generally, damages would be calculated based on the actual sales
 price versus the misrepresented price (here \$35 million minus \$12
 million). However, Plaintiffs were not fully paid the \$6 million owed
 under the misrepresented price, therefore, the calculation as set forth
 above will be used. Damages include losses, benefit-of-bargain
 damages, but pre-and post-judgment interest, along with punitive

damages (subject to the caps set forth in Tex. Civ. Prac. & Rem. Code § 41.008(b)) have not been included in the calculations, but Plaintiff reserves the right to add these calculations.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the assumption that interest rates are to be included in the calculation and Plaintiff reserves the right to include this calculation.

Total owed: \$6,960,466.60 to Plaintiff Everington

Calculation: $14,390,145$ (Total stock shares) $\times$ $\$2.08476$ (value of stock on May 11, 2022) $+ \$4,500,000.00$ (cash consideration) $- \$120,000.00$ (closing cash) $- \$1,006,384.26$ (Truist Promissory LOC) $- \$1,531,747.95$ (Third Party expenses) $= \$31,841,866.50$ (total value of sale after closing and third party deductions) $\div 2 = \$15,920,933.20$ $- \$2,000,000.00$ (amount paid to Plaintiffs) $= \$13,920,933.20$ (total owed to both Plaintiffs) $\div 2 = \$6,960,466.60$ (total owed to each Plaintiff)

$\$15,920,933.20 =$ Riesen's share
(50% value of sale)

$\$15,920,933.20 =$ Plaintiffs' total share
(representing 50% value of sale)
prior to \$2 million deduction

$\$13,920,933.20 =$ Amount owed to both Plaintiffs
with \$2 million deduction

$\$6,960,466.60 =$ Amount owed to Plaintiff
Everington

4. Count IV – Unjust Enrichment

Calculation: Plaintiff conferred benefits upon Defendant through his contributions to MSI's formation and operations; Defendant has been unjustly enriched by retaining the majority of proceeds from MSI's merger while denying Plaintiff's rightful share. Damages are calculated based on the value of the benefit Defendant received by keeping the majority of the sale proceeds that rightfully belonged to

both Plaintiffs. Therefore, the specific amount of unjust enrichment corresponds to the portion of MSI's sale proceeds that Defendant improperly retained. Damages include: disgorgement of unjustly retained proceeds from merger of MSI and restitution.

Discovery, is ongoing regarding the actual sale price. Plaintiff therefore reserves the right to supplement this response as additional information becomes available through discovery. Amounts calculated do not include the interest rate with the assumption that interest rates are to be included in the calculation and Plaintiff reserves the right to include these calculations.

Amount: (based on a calculation of total value of shares of stock on the date of the merger on May 11, 2022)

Total owed: \$6,960,466.60 to Plaintiff Everington

Calculation: 14,390,145 (Total stock shares) x \$2.08476 (value of stock on May 11, 2022) + \$4,500,000.00 (cash consideration) - \$120,000.00 (closing cash) - \$1,006,384.26 (Truist Promissory LOC) - \$1,531,747.95 (Third Party expenses) = \$31,841,866.50 (total value of sale after closing and third party deductions) ÷ 2 = \$15,920,933.20 - \$2,000,000.00 (amount paid to Plaintiffs) = \$13,920,933.20 (total owed to both Plaintiffs) ÷ 2 = \$6,960,466.60 (total owed to each Plaintiff)

\$15,920,933.20 = Riesen's share

(50% value of sale)

\$15,920,933.20 = Plaintiffs' total share
(representing 50% value of sale)
prior to \$2 million deduction

\$13,920,933.20 = Amount owed to both Plaintiffs
with \$2 million deduction

\$6,960,466.60 = Amount owed to Plaintiff
Everington

16. Identify all Documents that you used, referred to, or relied upon to respond to this First Set of Interrogatories.

ANSWER:

Please refer to Plaintiff's document production.

SUPPLEMENT:

- An offer of employment from MSI dated October 15, 2013
- An offer of employment for GRAP dated April 11, 2015
- A stock option agreement dated November 12, 2013
- A stock option agreement dated November 21, 2016
- Bonus Agreement
- GRAP chart
- Merger Consideration produced to Attorneys
- MSI Business Card
- Attorney Morris' letters
- Various correspondence with Defendant as produced in Discovery

VERIFICATION

Pursuant to 28 U.S.C. § 1746, I hereby declare under perjury of injury that the foregoing is true and correct to the best of my knowledge, information, and belief, as execute on this 19 day of December 2025.

Executed on this 19 day of December, 2025.


Alexis Everington (Dec 19, 2025 20:23:21 GMT+1)
Alexis Everington

ROG - Everington's Updated Supp Answers to Defendant ROG

Final Audit Report

2025-12-19

Created:	2025-12-19
By:	Dale Sisco (dsisco@sisco-law.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAmenYfAvWBjkRx7u3n5G6Y82Gpvt5wtTR

"ROG - Everington's Updated Supp Answers to Defendant ROG" History

-  Document created by Dale Sisco (dsisco@sisco-law.com)
2025-12-19 - 7:12:49 PM GMT- IP address: 47.206.173.101
-  Document emailed to Alexis Everington (alexis@internationaladvisoryservices.com) for signature
2025-12-19 - 7:12:54 PM GMT
-  Email viewed by Alexis Everington (alexis@internationaladvisoryservices.com)
2025-12-19 - 7:22:35 PM GMT- IP address: 104.28.135.69
-  Document e-signed by Alexis Everington (alexis@internationaladvisoryservices.com)
Signature Date: 2025-12-19 - 7:23:21 PM GMT - Time Source: server- IP address: 90.116.185.181
-  Agreement completed.
2025-12-19 - 7:23:21 PM GMT

**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

ALEXIS EVERINGTON
and RICHARD WHITE,

Plaintiffs,
v.

TIMOTHY J. RIESEN

Defendant.

Case No. 8:23-cv-02386-JLB-NHA

**PLAINTIFF WHITE'S RESPONSES TO DEFENDANT'S SECOND
REQUEST FOR PRODUCTION OF DOCUMENTS**

Plaintiff, Richard White, by and through undersigned counsel, hereby serves his responses to Defendant's Second Request for Production of Documents and in support thereof states as follows:

GENERAL OBJECTIONS

Plaintiff White states the following general objections to Defendant's Second Request for Production of Documents and reserves such objections:

- A. Plaintiff maintains objections on the grounds that the requested discovery is duplicative and repetitive of his previous deposition testimony in which he was asked at length regarding his claims in the Amended Complaint and he has been asked these questions and provided answers pertaining to same.
- B. Plaintiff maintains objections on the grounds that certain requests are known to Defendant and are in control or have been in Defendant's control.
- C. Plaintiff maintains objections on the grounds that the requests are not relevant to any of the party's claims or defenses in this case or are not

proportional to the needs of the case under Federal Rule of Civil Procedure 26(b)(1).

- D. Plaintiff maintains objections on the ground that the requests mischaracterize Plaintiff's allegations, including any suggestion that Plaintiff bears the burden of proving Defendant's intent or explaining Defendant's state of mind at the time of the Bonus Agreement or at any relevant time of Plaintiffs' claims.
- E. Plaintiff maintains objections on the grounds that the requests are not proportional, are not within the scope of this case, are burdensome and/or overbroad in accordance with the Federal Rules of Civil Procedure; and also to the extent that they seek documents that are not pertinent to this case and/or involve a foreign corporation that is not a party to this lawsuit and which may also involve that company's proprietary and/or confidential information.
- F. Plaintiff maintains objections to the extent that the requests seek information protected by the attorney-client privilege, work product doctrine, or other applicable privileges.

SECOND REQUEST FOR PRODUCTION

Discovery is ongoing and Plaintiff White expressly reserves the right to supplement these responses.

46. Produce all Documents (including Documents constituting Communications) relating to or evidencing any distribution of the \$2,000,000 Bonus Payment (paid by MSI to IAS on or about June 7, 2022) from IAS to its shareholders, directors, officers, employees, contractors, or affiliates, including bank transfer records showing the final destination of these funds.

OBJECTION: The question as phrased is irrelevant and duplicative; inquiries into matters regarding a company not involved in this lawsuit and these matters were already discussed during the depositions of Plaintiffs. Plaintiff White does not dispute that he received \$1 million from the Bonus Agreement as the first tranche in payment from Riesen for his partnership interest in MSI. Plaintiff White also objects on jurisdictional grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff White also objects to this request as it is

burdensome as he was only a consultant of IAS and he does not have access to IAS documents. Furthermore, Plaintiff White is on sabbatical from work. The request is also burdensome as Plaintiff White does not have these documents in his possession.

RESPONSE: Without waiving the aforementioned objections, Plaintiff White answers none in his possession.

47. Produce all tax returns, filings, or financial statements filed by IAS or Plaintiff in any jurisdiction for the tax year 2022 that reflect the receipt, categorization, or tax treatment of the \$2,000,000 Bonus Payment received from MSI.

OBJECTION: Objection, the question as phrased is irrelevant and duplicative as it was discussed in Plaintiffs' depositions. Plaintiff White does not dispute that he received \$1 million from the Bonus Agreement as the first tranche in payment from Defendant for his partnership interest in MSI. Plaintiff White also answered in his deposition that he pays 40% taxes in the U.K. Plaintiff White also objects on jurisdictional grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff White also objects to this request as it is burdensome as he was only a consultant of IAS and he does not have access to IAS documents. The request is also burdensome as Plaintiff White does not have these documents in his possession.

RESPONSE: Without waiving the aforementioned objections, Plaintiff White answers none in his possession.

48. All communications between Plaintiff and Defendant (or any accountant for MSI) from 2012 through 2022 in which Plaintiff requested a Schedule K-1, a share of profits, or access to MSI's tax returns.

OBJECTION: The question as phrased is duplicative and was already asked and answered in Plaintiff's deposition.

RESPONSE: Without waiving the aforementioned objections, Plaintiff White answers that there are the following documents regarding profit sharing of MSI and regarding an MSI audit:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440,

000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441

- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40
- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- Riesen correspondence providing audit of MSI to Plaintiffs; PP12/25:000116-125, 129-138, 218-220
- Riesen correspondence regarding Plaintiffs sharing in proceeds of MSI sale and potential problems with outward foreign ownership; PP:001978-79

49. Produce all Documents (including Documents constituting Communications) between you and any third party (excluding counsel) in which you represented yourself as an "employee" of Madison Springfield, Inc. (including, without limitation, to any tax authority, lending institution, or government agency).

OBJECTION: The question as phrased is duplicative and was already asked and answered in Plaintiff's deposition regarding being an employee of MSI. Further, due to the nature of work being performed in hostile countries, Plaintiff White could not identify himself as an MSI employee as that would mean imprisonment and/or death to himself and his network of researchers in those countries.

RESPONSE: Without waiving the aforementioned objections, Plaintiff White answers with the following documents regarding being an employee:

- Employment Offer Letter to White, PP:08/24:000276
- Everington's Employment Offer dated October 15, 2013; PP12/25:000126
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38

- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; PP: 12/25:000051
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Riesen correspondence to Brooke that Everington conducts Research and White conducts Analysis; P12/25:00000753-758
- MSI correspondence – Mr. Warren’s Feedback on Napoleon Research; P12/25:000747-748
- Ingrid correspondence – USAID MELA Jordan Proposal; P12/25:000744-746
- Ingrid correspondence – Writing Assignments; P12/25:001008-09
- Final GRAP proposal; P12/25:000661-716
- Strategic Multilayer Assessment – listing Plaintiff Everington with MSI; P12/25:001121-1181
- MSI proposal to Westlake listing Plaintiff Everington as Managing Principal; P12/25:001041-1057
- USAID 2018 Form – listing Plaintiff Everington; P12/25:001185-87
- USAID Jordan Technical Form Proposal version done by Plaintiff Everington; P12/25:001078-1120

50. Produce all Purchase Orders submitted by IAS to MSI from 2012 to 2022.

Objection: Plaintiff White objects on relevancy and jurisdictional grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS; furthermore, IAS is not named as a defendant with respect to any of Defendant’s counterclaims. Plaintiff White also objects to this request as it is burdensome as he was only a consultant of IAS and he does not have access to IAS documents. Furthermore, Plaintiff White is on sabbatical from work. The request is also burdensome as Plaintiff White does not have these documents in his possession. The request is also duplicative because Purchase Orders have already been produced in this matter.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers none.

51. Produce all Documents (including, without limitation, contracts, consulting agreements, or engagement letters) between you and IAS governing

your relationship to IAS from 2011 to 2022.

OBJECTION: Plaintiff White objects on relevancy and jurisdictional grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff White also objects to this request as it is burdensome as he was only a consultant of IAS and he does not have access to IAS documents. Furthermore, Plaintiff White is on sabbatical from work. Plaintiff White also objects that this request is duplicative as it was already discussed in his deposition.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers none as he worked based on trust with IAS.

52. Produce all Documents (including Documents constituting Communications) relating to or evidencing the “profit margin,” “overhead,” or “mark-up” charged by IAS to MSI for services rendered under any Purchase Order.

OBJECTION: Plaintiff White objects on relevancy, jurisdictional and burdensome grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff White also objects to this request as it is burdensome as he was only a consultant of IAS and he does not have access to IAS documents. Furthermore, Plaintiff White is on sabbatical from work. Plaintiff White also objects that this request is duplicative as it was already discussed in his deposition.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers none.

53. Produce all Documents (including Documents constituting Communications) relating to or evidencing any capital contribution made by you personally to Madison Springfield, Inc. at any time from 2011 to the present.

OBJECTION: Plaintiff White objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between IAS and MSI in which Plaintiffs took the financial risk for MSI by paying researchers up front for MSI projects (including paying overhead costs) and if any money was left over after being paid months later by MSI for work performed, Plaintiffs would split the money received.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers none.

54. Produce all Documents (including Documents constituting

Communications) relating to or evidencing proposals, bids, or capability statements submitted by IAS (or by you individually) to any government agency or third party from 2011-2022 that list Madison Springfield, Inc. as a prime contractor or partner.

OBJECTION: Plaintiff White objects on the ground that this request as phrased misperceives the relationship between IAS and MSI in which Defendant represented to Plaintiffs that MSI could have no foreign relationship in order to obtain U.S. government contracts, therefore due to the institutional layering, all work was submitted by MSI with Plaintiffs at all time being partners with Defendant.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers:

- MSI Proposal for Macedonia, listing Plaintiffs as Directors; PP12/25:000140-170, 187-217
- MSI Proposal for Asset Recovery, listing Everington as Managing Principal; PP12/25:000171-186
- Correspondence between parties regarding UK team, Mexico budget; PP12/25:000221-233
- Correspondence between parties, Riesen stating will use remaining funds for marketing or slush fund; PP12/25:000234-238
- Correspondence between parties and other MSI employees regarding: edits for Thales claim, projects in 2013; Odierno contract 2015, Riesen creating invoices: PP12/25:000239-252
- MSI Proposal for Asset Recovery, listing Everington as Managing Principal; PP12/25:000171-186
- Correspondence between parties regarding UK team, Mexico budget; PP12/25:000221-233
- Correspondence between parties, Riesen stating will use remaining funds for marketing or slush fund; PP12/25:000234-238
- Correspondence between parties and other MSI employees regarding: edits for Thales claim, projects in 2013; Odierno contract 2015, Riesen creating invoices: PP12/25:000239-252
- Correspondence regarding budget for a project. PP:08/24:002136
- Correspondence regarding pricing for proposals and markups; PP:08/24:002058-60
- Email from David Solomon to Riesen and White regarding security challenges and ISIS, Riesen correspondence to Solomon; PP:08/24:002112, 2123
 - Email from Kirsten Fontenrose from U.S. Department of State to Riesen and Everington regarding building a full court press; PP:08/24:002147
 - Riesen and Alexis interview transcript regarding ISIS and Syria;

- P12/25:000615-633; email pertaining to same; P12/25:001004-05
- Ingrid Email Jordan MELA proposal kickoff slides; P12/25:001006-07
- Ingrid Email - Jordan MELA Proposal; P12/25:000744-746
- Riesen Email Syria Survey and if Everington attending Syria forum; P12/25:000722-725
- Riesen Email correspondence regarding if Everington could come to brief Bradley, regarding Syria; P12/25:000728-730
- Email from Stoegbauer regarding MSI external brief; P12/25:000719-721
- Final GRAP Proposal; P12/25:000661-716
- Strategic Multilayer Assessment – listing Everington with MSI; P12/25:001121-1181
- MSI proposal to Westlake listing Plaintiff Everington as Managing Principal; P12/25:001041-1057
- MSI Lebanese Research Program; P12/25:001023-1041
- USAID Jordan Questions done by Plaintiff White; P12/25:001022
- USAID Form 2018 listing Plaintiff White: P12/25:001182-84

55. Produce all Documents (including Documents constituting Communications) relating to or evidencing any proposal, bid, capability statement, or response submitted by you, IAS, or MSI to USSOCOM regarding GRAP, including any drafts or final submissions identifying you as “Key Personnel.”

OBJECTION: Plaintiff White objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between Plaintiff with Riesen as Plaintiff at all times for all projects was a partner with Riesen. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers:

- Correspondence of parties regarding GRAP, PP:08/24:002049, 2052, PP:08/24:002108-09; 2113, 2116-2121, 2126; 2020
- GRAP Proposal PP:08/24:002408

- Riesen Correspondence Re GRAP PP:08/24:001942-43, 1947-1948, 2052, 2109
- Riesen Correspondence regarding GRAP Budget: PP:08/24:001966-73
- Riesen Correspondence regarding GRAP and selling MSI later: PP:08/24:001975
- Riesen Correspondence regarding GRAP and competitors; PP:08/24:002173, 2191
- Riesen and Plaintiff Everington Correspondence regarding GRAP and health insurance for foreign employees: PP:08/24:002008-2011
- Riesen correspondence regarding GRAP; stock options and Plaintiffs being bumped to 20% ownership, possible profit sharing if win GRAP: PP:08/24:002022-27
- Riesen email bidding for GRAP again and other GRAP correspondence: PP:08/24:002042, 2113, 2116
- Ingrid De La Fuente's email regarding GRAP bid: PP:08/24:002049
- US Correspondence regarding GRAP: PP:08/24:002120-2121, 2116
- GRAP proposal with personnel chart: PP:08/24:002364-2397
- Final GRAP proposal – naming Plaintiffs as employees/personnel; P12/25:000661-716

56. Produce all Communications between you (or anyone acting on behalf of IAS) and any representative of the United States Government (including USSOCOM) regarding GRAP.

OBJECTION: Plaintiff White objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between Plaintiff with Riesen as Plaintiff at all times for all projects was a partner with Riesen. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers:

- Correspondence of parties regarding GRAP, PP:08/24:002049, 2052, PP:08/24:002108-09; 2113, 2116-2121, 2126,
- GRAP Proposal PP:08/24:002408
- Riesen Correspondence Re GRAP PP:08/24:001942-43, 1947-1948, 2052, 2109
- Riesen Correspondence regarding GRAP Budget: PP:08/24:001966-73
- Riesen Correspondence regarding GRAP and selling MSI later: PP:08/24:001975
- Riesen Correspondence regarding GRAP and competitors; PP:08/24:002173, 2191
- Riesen and Alexis Correspondence regarding GRAP and health insurance for foreign employees: PP:08/24:002008-2011
- Riesen correspondence regarding GRAP; stock options and Plaintiffs being bumped to 20% ownership, possible profit sharing if win GRAP: PP:08/24:002022-27
- Riesen email bidding for GRAP again and other GRAP correspondence: PP:08/24:002042, 2113, 2116
- Ingrid De La Fuente's email regarding GRAP bid: PP:08/24:002049,
- US Correspondence regarding GRAP: PP:08/24:002120-2121, 2116
- GRAP proposal with personnel chart: PP:08/24:002364-2397
- Final GRAP proposal – naming Plaintiffs as employees/personnel; P12/25:000661-716

57. Produce all Communications between you (or anyone acting on behalf of IAS) and Defendant or MSI regarding GRAP.

OBJECTION: Plaintiff White objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between Plaintiff with Riesen as Plaintiff at all times for all projects was a partner with Riesen. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff White answers:

- Correspondence of parties regarding GRAP, PP:08/24:002049, 2052, PP:08/24:002108-09; 2113, 2116-2121, 2126,
- GRAP Proposal PP:08/24:002408
- Riesen Correspondence Re GRAP PP:08/24:001942-43, 1947-1948, 2052, 2109
- Riesen Correspondence regarding GRAP Budget: PP:08/24:001966-73
- Riesen Correspondence regarding GRAP and selling MSI later: PP:08/24:001975
- Riesen Correspondence regarding GRAP and competitors; PP:08/24:002173, 2191
- Riesen and Alexis Correspondence regarding GRAP and health insurance for foreign employees: PP:08/24:002008-2011
- Riesen correspondence regarding GRAP; stock options and Plaintiffs being bumped to 20% ownership, possible profit sharing if win GRAP: PP:08/24:002022-27
- Riesen email bidding for GRAP again and other GRAP correspondence: PP:08/24:002042, 2113, 2116
- Ingrid De La Fuente's email regarding GRAP bid: PP:08/24:002049,
- US Correspondence regarding GRAP: PP:08/24:002120-2121, 2116
- GRAP proposal with personnel chart: PP:08/24:002364-2397
- Final GRAP proposal – naming Plaintiffs as employees/personnel; P12/25:000661-716

58. Produce all Documents (including Documents constituting Communications) relating to or evidencing the award, non-award, cancellation, withdrawal, or termination of the GRAP solicitation or any contract related thereto.

OBJECTION: Plaintiff White objects that this request is duplicative as it was

already discussed in his deposition and as phrased misperceives the relationship between Plaintiff and Defendant as Plaintiff and Defendant were partners at all times for MSI. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients. Any such documentation would be in Defendant's possession.

RESPONSE: Without waiving aforementioned objections, Plaintiff answers:

- Correspondence Riesen regarding decline by Department of Defense dated June 22, 2015: PP:08/24:002001
- Email – Riesen explaining awarded META instead of GRAP; P12/25:0010011-1021

59. Produce all Documents relating to or relied upon by you in preparing your responses to Defendant's Second Set of Interrogatories.

OBJECTION: Plaintiff White objects that this request is duplicative as it was already discussed in his previous answers to a Request for Production of documents and in this Request for Production.

RESPONSE: Please see all previously produced documents, including additional document production, along with:

- Email Correspondence – Riesen stating 10% under First Stock option Agreement; P12/25:000726-727
- Email Correspondence regarding hiring Brooke, Foster, former colleague for MSI, Everington's 753-758 correspondence with Brooke; P12/25:000736-743, 479;
- Email Chain – Riesen promising Plaintiffs two million dollars each
- Strategic Multilayer Assessment – listing Everington with MSI; P12/25:001121-1181
- MSI proposal to Westlake listing Plaintiff Everington as Managing Principal; P12/25:001041-1057
- USAID Jordan Questions done by Plaintiff White; P12/25:001022
- USAID Jordan Technical Form Proposal version done by Plaintiff Everington; P12/25:001078-1120
- Email Correspondence regarding how Plaintiffs benefit from sale of MSI in future; how to profit if obtai of GRAP or other similar contracts; P12/25:000750-752
- Email Correspondence regarding final projects, \$4 million dollars;

P12/25:000759-001000

- Email Correspondence, setting up MSI email; P12/25:001001-1003
- MSI Lebanese Research Program; P12/25:001023-1041;
- USAID Form 2018 listing Plaintiff White: P12/25:001182-84
- USAID 2018 Form – listing Plaintiff Everington; P12/25:001185-87

Respectfully Submitted,

SISCO-LAW

/s/ Cynthia C. Sonnemann

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Counsel for the Plaintiffs

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on January 9, 2026, a true and correct copy of the foregoing has been furnished via email to all counsel of record and to the following parties:

Erik Johanson, Esq.
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/s/ Cynthia C. Sonnemann
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**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

ALEXIS EVERINGTON
and RICHARD WHITE,

Plaintiffs,
v.

TIMOTHY J. RIESEN

Defendant.

Case No. 8:23-cv-02386-JLB-NHA

**PLAINTIFF EVERINGTON'S RESPONSES TO DEFENDANT'S SECOND
REQUEST FOR PRODUCTION OF DOCUMENTS**

Plaintiff, Alexis Everington, by and through undersigned counsel, hereby serves his responses to Defendant's Second Request for Production of Documents and in support thereof states as follows:

GENERAL OBJECTIONS

Plaintiff Everington states the following general objections to Defendant's Second Request for Production of Documents and reserves such objections:

- A. Plaintiff maintains objections on the grounds that the requested discovery is duplicative and repetitive of his previous deposition testimony in which he was asked at length regarding his claims in the Amended Complaint and he has been asked these questions and provided answers pertaining to same.
- B. Plaintiff maintains objections on the grounds that certain requests are known to Defendant and are in control or have been in Defendant's control.
- C. Plaintiff maintains objections on the grounds that the requests are not relevant to any of the party's claims or defenses in this case or are not proportional to the needs of the case under Federal Rule of Civil Procedure 26(b)(1).

- D. Plaintiff maintains objections on the ground that the requests mischaracterize Plaintiff's allegations, including any suggestion that Plaintiff bears of the burden of proving Defendant's intent or explaining Defendant's state of mind at the time of the Bonus Agreement or at any relevant time of Plaintiffs' claims.
- E. Plaintiff maintains objections on the grounds that the requests are not proportional, are not within the scope of this case, are burdensome and/or overbroad in accordance with the Federal Rules of Civil Procedure; and also to the extent that they seek documents that are not pertinent to this case and/or involve a foreign corporation that is not a party to this lawsuit and which may also involve that company's proprietary and/or confidential information.
- F. Plaintiff maintains objections to the extent that the requests seek information protected by the attorney-client privilege, work product doctrine, or other applicable privileges.

SECOND REQUEST FOR PRODUCTION

Discovery is ongoing and Plaintiff Everington expressly reserves the right to supplement these responses.

46. Produce all Documents (including Documents constituting Communications) relating to or evidencing any distribution of the \$2,000,000 Bonus Payment (paid by MSI to IAS on or about June 7, 2022) from IAS to its shareholders, directors, officers, employees, contractors, or affiliates, including bank transfer records showing the final destination of these funds.

OBJECTION: The question as phrased is irrelevant and duplicative; inquiries into matters regarding a company not involved in this lawsuit and these matters were already discussed during the depositions of Plaintiffs. Plaintiff Everington has already indicated he received \$1 million from the Bonus Agreement as the first payment from Riesen for his partnership interest in MSI. Plaintiff Everington also objects on jurisdictional grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff Everington also objects to this request as it is burdensome as he does not have these documents in his possession.

RESPONSE: Without waiving the aforementioned objections, Plaintiff Everington answers none in his possession.

47. Produce all tax returns, filings, or financial statements filed by IAS or Plaintiff in any jurisdiction for the tax year 2022 that reflect the receipt, categorization, or tax treatment of the \$2,000,000 Bonus Payment received from MSI.

OBJECTION: The question as phrased is irrelevant and duplicative as it was discussed in Plaintiffs' depositions. Plaintiff Everington does not dispute that he received \$1 million from the Bonus Agreement as the first tranche in payment from Defendant for his partnership interest in MSI. Plaintiff Everington also answered in his deposition that he does not pay taxes as a Monaco resident. Plaintiff Everington also objects on jurisdictional grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff Everington also objects to this request as it is burdensome as he does not have these documents in his possession.

RESPONSE: Without waiving the aforementioned objections, Plaintiff Everington answers none in his possession and IAS does not file taxes.

48. All communications between Plaintiff and Defendant (or any accountant for MSI) from 2012 through 2022 in which Plaintiff requested a Schedule K-1, a share of profits, or access to MSI's tax returns.

OBJECTION: The question as phrased is duplicative and was already asked and answered in Plaintiff's deposition.

RESPONSE: Without waiving the aforementioned objections, Plaintiff Everington answers that there are the following documents regarding profit sharing of MSI and regarding an MSI audit:

- Stock Option Agreements, Bates numbers PP:08/24:000217-234, 002159-2161
- Mr. Morris' letters, Bates numbers PP:08/24:000235-236
- Communications regarding MSI Sale PP:08/24:000359-366, 000380, 000385, 000387-394, 000398-403, 000406-425, 000429-430, 000440, 000472, 000595-601, 000605, 000608, 000614-618, 000621-624, 000634, 000640-655, 000665, 001031-1034, 002432-2441
- Everington correspondence that all three men are in MSI together with vision of selling it; PP:12/25:000002-3
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Correspondence from Riesen that parties are accomplishing great things together, including creating a market that has at least \$300m in demand; Everington's correspondence regarding \$300m and MSI email listing him as Managing Director; PP: 12/25:000039-40

- Riesen correspondence that considers their work as a collaboration not one of vendor/client; PP: 12/25:000054-55
- Riesen correspondence providing audit of MSI to Plaintiffs; PP12/25:000116-125, 129-138, 218-220
- Riesen correspondence regarding Plaintiffs sharing in proceeds of MSI sale and potential problems with outward foreign ownership; PP:001978-79

49. Produce all Documents (including Documents constituting Communications) between you and any third party (excluding counsel) in which you represented yourself as an “employee” of Madison Springfield, Inc. (including, without limitation, to any tax authority, lending institution, or government agency).

OBJECTION: The question as phrased is duplicative and was already asked and answered in Plaintiff’s deposition regarding being an employee of MSI. Further, due to the nature of work being performed in hostile countries, Plaintiff Everington could not identify himself as an MSI employee as that would mean imprisonment and/or death to himself and his network of researchers in those countries.

RESPONSE: Without waiving the aforementioned objections, Plaintiff Everington answers with the following documents regarding being an employee:

- Employment Offer Letter to White, PP:08/24:000276
- Everington’s Employment Offer dated October 15, 2013; PP12/25:000126
- Correspondence from Riesen explaining 10 percent stock option and employment letters; PP: 12/25:000036-38
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; PP: 12/25:000051
- Riesen correspondence - Everington and White being listed as MSI employees for recognition in work; Riesen considered himself part of IAS; PP: 12/25:000051
- Timesheet for Alexis and for Scientists; PP12/25:000128, 139
- Riesen correspondence – Alexis Research Richard Analysis; P12/25:00753-758
- MSI correspondence – Mr. Warren’s Feedback on Napoleon Research; P12/25:000747-748
- Ingrid correspondence – USAID MELA Jordan Proposal; P12/25:000744-746
- Ingrid correspondence – Writing Assignments; P12/25:001008-09
- Final GRAP proposal; P12/25:000661-716
- Strategic Multilayer Assessment – listing Plaintiff Everington with MSI;

P12/25:001121-1181

- MSI proposal to Westlake listing Plaintiff Everington as Managing Principal; P12/25:001041-1057
- USAID 2018 Form – listing Plaintiff Everington; P12/25:001185-87
- USAID Jordan Technical Form Proposal version done by Plaintiff Everington; P12/25:001078-1120

50. Produce all Purchase Orders submitted by IAS to MSI from 2012 to 2022.

OBJECTION: Plaintiff Everington objects on relevancy and jurisdictional grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS; furthermore, IAS is not named as a defendant with respect to any of Defendant's counterclaims. Plaintiff Everington also objects to this request as it is burdensome as IAS is not a party to this lawsuit.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers the following have been produced:

- Invoices: PP12/25:000253-609, 0000009-11

51. Produce all Documents (including, without limitation, contracts, consulting agreements, or engagement letters) between you and IAS governing your relationship to IAS from 2011 to 2022.

OBJECTION: Plaintiff Everington objects on relevancy, jurisdictional and burdensome grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff Everington also objects to this request as it is duplicative because it was already discussed in his deposition.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers none.

52. Produce all Documents (including Documents constituting Communications) relating to or evidencing the "profit margin," "overhead," or "mark-up" charged by IAS to MSI for services rendered under any Purchase Order.

OBJECTION: Plaintiff Everington objects on relevancy, jurisdictional and burdensome grounds as IAS is not a party to this dispute and as a foreign entity, this Court has no jurisdiction over IAS. Plaintiff Everington also objects to this request as it is duplicative because it was already discussed in his deposition.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers none.

53. Produce all Documents (including Documents constituting Communications) relating to or evidencing any capital contribution made by you personally to Madison Springfield, Inc. at any time from 2011 to the present.

OBJECTION: Plaintiff Everington objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between IAS and MSI in which Plaintiffs took the financial risk for MSI by paying researchers up front for MSI projects (including paying overhead costs) and if any money was left over after being paid months later by MSI for work performed, Plaintiffs would split the money received. Further, Plaintiff Everington spent around 15k on developing a data collection app that was not successful in its application.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers:

- Correspondence regarding App: PP:08/24:002194-95
- Correspondence regarding App: P12/25:000732-735

54. Produce all Documents (including Documents constituting Communications) relating to or evidencing proposals, bids, or capability statements submitted by IAS (or by you individually) to any government agency or third party from 2011-2022 that list Madison Springfield, Inc. as a prime contractor or partner.

OBJECTION: Plaintiff Everington objects on the ground that this request as phrased misperceives the relationship between IAS and MSI in which Defendant represented to Plaintiffs that MSI could have no foreign relationship in order to obtain U.S. government contracts, therefore due to institutional layering, all work was submitted by MSI with Plaintiffs at all times being partners with Defendant.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers:

- MSI Proposal for Macedonia, listing Plaintiffs as Directors; PP12/25:000140-170, 187-217
- MSI Proposal for Asset Recovery, listing Everington as Managing Principal; PP12/25:000171-186
- Correspondence between parties regarding UK team, Mexico budget; PP12/25:000221-233
- Correspondence between parties, Riesen stating will use remaining funds for marketing or slush fund; PP12/25:000234-238
- Correspondence between parties and other MSI employees regarding:

- edits for Thales claim, projects in 2013; Odierno contract 2015, Riesen creating invoices: PP12/25:000239-252
- MSI Proposal for Asset Recovery, listing Everington as Managing Principal; PP12/25:000171-186
- Correspondence between parties regarding UK team, Mexico budget; PP12/25:000221-233
- Correspondence between parties, Riesen stating will use remaining funds for marketing or slush fund; PP12/25:000234-238
- Correspondence between parties and other MSI employees regarding: edits for Thales claim, projects in 2013; Odierno contract 2015, Riesen creating invoices: PP12/25:000239-252
- Correspondence regarding budget for a project. PP:08/24:002136
- Correspondence regarding pricing for proposals and markups; PP:08/24:002058-60
- Email from David Solomon to Riesen and White regarding security challenges and ISIS, Riesen correspondence to Solomon; PP:08/24:002112, 2123
 - Email from Kirsten Fontenrose from U.S. Department of State to Riesen and Everington regarding building a full court press; PP:08/24:002147
- Riesen Correspondence that Alexis is the Director of Research for MSI; PP:08/24:001962
- Riesen and Alexis interview transcript regarding ISIS and Syria; P12/25:000615-633; email pertaining to same; P12/25:001004-05
- Ingrid Email Jordan MELA proposal kickoff slides; P12/25:001006-07
- Ingrid Email - Jordan MELA Proposal; P12/25:000744-746
- Riesen Email Syria Survey and if Everington attending Syria forum; P12/25:000722-725
- Riesen Email correspondence regarding if Everington could come to brief Bradley, regarding Syria; P12/25:000728-730
- Email from Stoegbauer regarding MSI external brief; P12/25:000719-721
- Final GRAP Proposal; P12/25:000661-716
- Strategic Multilayer Assessment – listing Everington with MSI; P12/25:001121-1181
- MSI proposal to Westlake listing Plaintiff Everington as Managing Principal; P12/25:001041-1057
- USAID 2018 Form – listing Plaintiff Everington; P12/25:001185-87
- USAID Jordan Technical Form Proposal version done by Plaintiff Everington listing him as Section Lead; P12/25:000634-660
- MSI Lebanese Research Program; ; P12/25:001023-1041

55. Produce all Documents (including Documents constituting Communications) relating to or evidencing any proposal, bid, capability statement, or response submitted by you, IAS, or MSI to USSOCOM regarding GRAP, including any drafts or final submissions identifying you as "Key Personnel."

OBJECTION: Plaintiff Everington objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between Plaintiff with Riesen as Plaintiff at all times for all projects was a partner with Riesen. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers:

- Correspondence of parties regarding GRAP, PP:08/24:002049, 2052, PP:08/24:002108-09; 2113, 2116-2121, 2126, 2020
- GRAP Proposal PP:08/24:002408
- Riesen Correspondence Re GRAP PP:08/24:001942-43, 1947-1948, 2052, 2109
- Riesen Correspondence regarding GRAP Budget: PP:08/24:001966-73
- Riesen Correspondence regarding GRAP and selling MSI later: PP:08/24:001975
- Riesen Correspondence regarding GRAP and competitors; PP:08/24:002173, 2191
- Riesen and Plaintiff Everington Correspondence regarding GRAP and health insurance for foreign employees: PP:08/24:002008-2011
- Riesen correspondence regarding GRAP; stock options and Plaintiffs being bumped to 20% ownership, possible profit sharing if win GRAP: PP:08/24:002022-27
- Riesen email bidding for GRAP again and other GRAP correspondence: PP:08/24:002042, 2113, 2116
- Ingrid De La Fuente's email regarding GRAP bid: PP:08/24:002049,

- US Correspondence regarding GRAP: PP:08/24:002120-2121, 2116
- GRAP proposal with personnel chart: PP:08/24:002364-2397
- Final GRAP proposal – naming Plaintiffs as employees/personnel; P12/25:000661-716

56. Produce all Communications between you (or anyone acting on behalf of IAS) and any representative of the United States Government (including USSOCOM) regarding GRAP.

OBJECTION: Plaintiff Everington objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between Plaintiff with Riesen as Plaintiff at all times for all projects was a partner with Riesen. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers:

- Correspondence of parties regarding GRAP, PP:08/24:002049, 2052, PP:08/24:002108-09; 2113, 2116-2121, 2126,
- GRAP Proposal PP:08/24:002408
- Riesen Correspondence Re GRAP PP:08/24:001942-43, 1947-1948, 2052, 2109
- Riesen Correspondence regarding GRAP Budget: PP:08/24:001966-73
- Riesen Correspondence regarding GRAP and selling MSI later: PP:08/24:001975
- Riesen Correspondence regarding GRAP and competitors; PP:08/24:002173, 2191
- Riesen and Alexis Correspondence regarding GRAP and health insurance for foreign employees: PP:08/24:002008-2011
- Riesen correspondence regarding GRAP; stock options and Plaintiffs being bumped to 20% ownership, possible profit sharing if win GRAP: PP:08/24:002022-27

- Riesen email bidding for GRAP again and other GRAP correspondence: PP:08/24:002042, 2113, 2116
- Ingrid De La Fuente's email regarding GRAP bid: PP:08/24:002049; P12/25:000717-718
- US Correspondence regarding GRAP: PP:08/24:002120-2121, 2116
- GRAP proposal with personnel chart: PP:08/24:002364-2397
- Final GRAP proposal – naming Plaintiffs as employees/personnel; P12/25:000661-716

57. Produce all Communications between you (or anyone acting on behalf of IAS) and Defendant or MSI regarding GRAP.

OBJECTION: Plaintiff Everington objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between Plaintiff with Riesen as Plaintiff at all times for all projects was a partner with Riesen. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients.

RESPONSE: Without waiving any of the aforementioned objections, Plaintiff Everington answers:

- Correspondence of parties regarding GRAP, PP:08/24:002049, 2052, PP:08/24:002108-09; 2113, 2116-2121, 2126,
- GRAP Proposal PP:08/24:002408
- Riesen Correspondence Re GRAP PP:08/24:001942-43, 1947-1948, 2052, 2109
- Riesen Correspondence regarding GRAP Budget: PP:08/24:001966-73
- Riesen Correspondence regarding GRAP and selling MSI later: PP:08/24:001975
- Riesen Correspondence regarding GRAP and competitors; PP:08/24:002173, 2191

- Riesen and Alexis Correspondence regarding GRAP and health insurance for foreign employees: PP:08/24:002008-2011
- Riesen correspondence regarding GRAP; stock options and Plaintiffs being bumped to 20% ownership, possible profit sharing if win GRAP: PP:08/24:002022-27
- Riesen email bidding for GRAP again and other GRAP correspondence: PP:08/24:002042, 2113, 2116
- Ingrid De La Fuente's email regarding GRAP bid: PP:08/24:002049,
- US Correspondence regarding GRAP: PP:08/24:002120-2121, 2116
- GRAP proposal with personnel chart: PP:08/24:002364-2397
- Final GRAP proposal – naming Plaintiffs as employees/personnel; P12/25:000661-716

58. Produce all Documents (including Documents constituting Communications) relating to or evidencing the award, non-award, cancellation, withdrawal, or termination of the GRAP solicitation or any contract related thereto.

OBJECTION: Plaintiff Everington objects that this request is duplicative as it was already discussed in his deposition and as phrased misperceives the relationship between Plaintiff and Defendant as Plaintiff and Defendant were partners at all times for MSI. Furthermore, this request as phrased misperceives the relationship between IAS and MSI in which MSI provided all bid submissions to potential clients. Any such documentation would be in Defendant's possession.

RESPONSE: Without waiving aforementioned objections, Plaintiff answers:

- Correspondence Riesen regarding decline by Department of Defense dated June 22, 2015: PP:08/24:002001
- Email – Riesen explaining awarded META instead of GRAP; P12/25:0010011-1021

59. Produce all Documents relating to or relied upon by you in preparing your responses to Defendant's Second Set of Interrogatories.

OBJECTION: Plaintiff Everington objects that this request is duplicative as it

was already discussed in his previous answers to a Request for Production of documents and in this Request for Production.

RESPONSE: Please see all previously produced documents, including additional document production, along with:

- Email Correspondence – Riesen stating 10% under First Stock option Agreement; P12/25:000726-727
- Email Correspondence regarding hiring Brooke, Foster, former colleague for MSI, Everington's 753-758 correspondence with Brooke; P12/25:000736-743, 479;
- Email Chain – Riesen promising Plaintiffs two million dollars each
- Strategic Multilayer Assessment – listing Everington with MSI; P12/25:001121-1181
- MSI proposal to Westlake listing Plaintiff Everington as Managing Principal; P12/25:001041-1057
- USAID Jordan Questions done by Plaintiff White; P12/25:001022
- USAID Jordan Technical Form Proposal version done by Plaintiff Everington; P12/25:001078-1120
- Email Correspondence regarding how Plaintiffs benefit from sale of MSI in future; how to profit if obtain of GRAP or other similar contracts; P12/25:000750-752
- Email Correspondence regarding final projects, \$4 million dollars; P12/25:000759-001000
- Email Correspondence, setting up MSI email; P12/25:001001-1003
- MSI Lebanese Research Program; P12/25:001023-1041;
- USAID Form 2018 listing Plaintiff White: P12/25:001182-84
- USAID 2018 Form – listing Plaintiff Everington; P12/25:001185-87

Respectfully Submitted,

SISCO-LAW

/s/ Cynthia C. Sonnemann

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Counsel for the Plaintiffs

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on January 9, 2026, a true and correct copy of the foregoing has been furnished via email to all counsel of record and to the following parties:

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Outlook

Meet and Confer regarding Discovery Deficiencies – Everington v. Riesen

From Scott Johnson <sjohnson@dbllawyers.com>

Date Fri 2026-01-16 1:58 PM

To Cynthia Sonnemann <csonnemann@sisco-law.com>; Dale Sisco <dsisco@sisco-law.com>

Cc Erik Johanson <erik@johanson.law>

Good Afternoon Cynthia and Dale,

Please treat this email as our good-faith attempt to resolve outstanding discovery disputes pursuant to Local Rule 3.01(g).

Preliminary Matter

Regarding your request for Defendant's privilege log and the specific Bates-stamp numbers corresponding to Defendant's responses to Plaintiffs' Second Set of RFPDs: We are actively working to finalize these materials. We will not have them completed by your requested 2:00 p.m. deadline, but we intend to provide them as soon as possible.

Deficiencies in Plaintiffs' Responses

Regarding Plaintiffs' responses, we note significant deficiencies. Despite Magistrate Judge Hirt Adams' December 11th Order on Defendant's Motion to Compel, Plaintiffs have failed to provide responses to multiple interrogatories and document requests pertaining to IAS. As you are aware, Magistrate Judge Hirt Adams expressly held that:

"IAS's formation, finances, and internal operations are relevant, because they bear on IAS's relationship (and Plaintiffs' relationship) to MSI. For example, the Defendant asserts that IAS was merely a subcontractor for MSI while Plaintiffs assert IAS was merely a shell company for payments to MSI. IAS's documents are likely relevant to those competing claims." (Dkt. 107, p. 28).

We concur entirely with the Court's ruling on the relevance of IAS-related information. Accordingly, we request that you provide substantive responses to the following requests:

- **Request No. 10 (Compensation/Relationship):** Plaintiffs have objected and failed to provide documents regarding "compensation, salary, fees... or other financial remuneration you received from IAS." These documents are directly relevant to the core issue of whether Plaintiffs were employees of MSI or independent contractors paid by IAS.
- **Request No. 44 (White Tax Returns):** Despite the Court's Order compelling responsive documents, Plaintiff White has failed to produce them, instead referring generally to gross payments from MSI to IAS. Mr. White's current stance—that he "does not have possession"—directly conflicts with his objection that production would be "highly burdensome due to the nature of the request from a foreign country." Mr. White must comply with the Court's Order and produce documents relating to the taxes he filed.
- **Request No. 47 (Tax Treatment of Bonus):** This request seeks documents reflecting the tax treatment of the \$2M bonus. Plaintiff provided no response. This information is critical to determining the nature of the payment (e.g., income vs. equity distribution).
- **Request Nos. 51 & 52 (IAS Agreements & Mark-ups):** These requests seek the agreements governing Plaintiffs' relationship with IAS and documents evidencing IAS's mark-ups/profit margins. Plaintiffs objected based on IAS being a "non-party." As noted above, the Court has

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already overruled the “non-party” distinction regarding IAS’s relevance. These documents must be produced.

- **Interrogatory No. 5(d):** While Plaintiffs provided answers to subparts (a) through (c), neither Plaintiff responded to subpart (d), which specifically asks for the compensation received from IAS.
- **Interrogatory No. 18 (Other Income Sources):** Plaintiff objected that this is burdensome, irrelevant, and involves a “non-party foreign entity.” This information is directly relevant to Plaintiffs’ claims of “partnership” (duty of loyalty) and the extent of their alleged “employment” (exclusivity).

As the deadline for filing discovery-related motions is today, we require a commitment to supplement the responses detailed below by **4:30 p.m. today**. If we do not receive a satisfactory response by that time, we will proceed with filing a Motion to Compel.



H. Scott Johnson, Jr.

Partner

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[Schedule a Meeting](#)



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